

ANIMALS' RIGHTS

CONSIDERED IN RELATION TO
SOCIAL PROGRESS

HENRY S. SALT

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BY

HENRY S. SALT

REVISED EDITION

LONDON
G. BELL AND SONS, LTD.
YORK HOUSE, PORTUGAL STREET

1922

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TO MY FRIEND HOWARD WILLIAMS
AND OTHER HUMANITARIAN
COLLEAGUES

PREFACE

As a memorial of work done on behalf of the rights of animals, it has been thought fitting, by members and friends of the late Humanitarian League, that a new edition of this little book should be published in the year that brings the centenary of “Martin’s Act,” the first legislation for the prevention of cruelty to the non-human races.

Of the progress made in this branch of ethics, since 1822, some account is incidentally given in the book; and during the last few years the advance has been steadily continued. Attention has been drawn, for instance, to the antiquated methods employed in the slaughter of animals for food; and this has corresponded with an increase in the practice of vegetarianism. The treatment of other domestic animals, such as pit ponies, and the worn-out horses exported to the Continent, has stirred the public conscience; and at the same time the cruelty and folly of what is technically known as “the wild animal industry”—the kidnapping of “specimens” for exhibition in zoological gardens, or as “performing animals” on the stage—are becoming better understood.

Again, the disgust caused by the ravages of “murderous millinery” (a term first used as a chapter-heading in this book) has taken visible shape in the recent Act for the regulation of the plumage trade; and even “sport,” the last and dearest stronghold of the savage, has been seriously menaced, not only by the discontinuance of the Royal Buckhounds in 1901, but also lately by the emphatic condemnation of pigeon-shooting.

The core of the contention for a recognition of the rights of animals will be found in the following passage of a letter addressed by Mr. Thomas Hardy to the Humanitarian League in 1910:

“Few people seem to perceive fully as yet that the most far-reaching consequence of the establishment of the common origin of all species is ethical; that it logically involved a readjustment of altruistic morals, by enlarging, as a necessity of rightness, the application of what has been called ‘The Golden Rule’ from the area of mere mankind to that of the whole animal

kingdom.... While man was deemed to be a creation apart from all other creations, a secondary or tertiary morality was considered good enough to practise towards the 'inferior' races; but no person who reasons nowadays can escape the trying conclusion that this is not maintainable."

It may be taken, perhaps, as a sign of the extension of humane ideas that, since its first appearance in 1892, this essay on "Animals' Rights" has passed through numerous editions, and has been translated into French, German, Dutch, Swedish, and other European tongues.

Valuable suggestions concerning the book have reached me from several friends: in particular I am indebted to Sir George Greenwood, who has been actively associated, both in Parliament and elsewhere, with the cause of justice to animals.

H. S. S.

January 1922.

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ANIMALS' RIGHTS.

CHAPTER I.

THE PRINCIPLE OF ANIMALS' RIGHTS.

HAVE the lower animals “rights”? Undoubtedly—if men have. That is the point I wish to make evident in this opening chapter. But have men rights? Let it be stated at the outset that I have no intention of discussing the abstract theory of rights, which at the present time is looked upon with suspicion and disfavour by many social reformers, since it has not unfrequently been made to cover the most extravagant and contradictory assertions. But though its phraseology is vague, there is nevertheless a solid truth underlying it—a truth which has always been clearly apprehended by the moral faculty, however difficult it may be to establish it on an unassailable logical basis. If men have not “rights”—well, they have an unmistakable intimation of something very similar; a sense of justice which marks the boundary-line where acquiescence ceases and resistance begins; a demand for freedom to live their own lives, subject to the necessity of respecting the equal freedom of other people.

Such is the doctrine of rights as formulated by Herbert Spencer. “Every man,” he says, “is free to do that which he wills, provided he infringes not the equal liberty of any other man.” And again, “Whoever admits that each man must have a certain restricted freedom, asserts that it is *right* he should have this restricted freedom.... And hence the several particular freedoms deducible may fitly be called, as they commonly are called, his *rights*” (“Justice,” pp. 46, 62).^[1]

The fitness of this nomenclature is disputed, but the existence of some real principle of the kind can hardly be called in question; so that the controversy concerning “rights” is little else than an academic battle over words, which leads to no practical conclusion. I shall assume, therefore, that men are possessed of “rights,” in the sense of Herbert Spencer’s definition; and if any of my readers object to this qualified use of the term, I can only say that I shall be perfectly willing to change the word as soon as a more appropriate one is forthcoming.^[2] The immediate question that claims our attention is this—if men have rights, have animals their rights also?

From the earliest times there have been thinkers who, directly or indirectly, answered this question with an affirmative. The Buddhist and Pythagorean canons, dominated perhaps by the creed of reincarnation, included the maxim “not to kill or injure any innocent animal.” The humanitarian philosophers of the Roman empire, among whom Seneca, Plutarch, and Porphyry were the most conspicuous, took still higher ground in preaching humanity on the broadest principle of universal benevolence. “Since justice is due to rational beings,” wrote Porphyry, “how is it possible to evade the admission that we are bound also to act justly towards the races below us?”

It is a lamentable fact that during the churchdom of the middle ages, from the fourth century to the sixteenth, from the time of Porphyry to the time of Montaigne, little or no attention was paid to the question of the rights and wrongs of the lower races. Then, with the Reformation and the revival of learning, came a revival also of humanitarian feeling, as may be seen in many passages of Erasmus and More, Shakespeare and Bacon; but it was not until the eighteenth century, the age of enlightenment and “sensibility,” of which Voltaire and Rousseau were the spokesmen, that the rights of animals obtained more deliberate recognition. From the great Revolution of 1789 dates the period when the world-wide spirit of humanitarianism, which had hitherto been felt by but one man in a million—the thesis of the philosopher or the vision of the poet—began to disclose itself, gradually and dimly at first, as an essential feature of democracy.

A great and far-reaching effect was produced in England at this time by the publication of such revolutionary works as Thomas Paine’s “Rights of Man” and Mary Wollstonecraft’s “Vindication of the Rights of Woman”; and looking back now, after the lapse of a hundred years, we can see that a still wider extension of the theory of rights was thenceforth inevitable. In fact, such a claim was anticipated—if only in bitter jest—by a contemporary writer, who furnishes us with a notable instance of how the mockery of one generation may become the reality of the next. There was published anonymously in 1792 a little volume entitled “A Vindication of the Rights of Brutes,”^[3] a *reductio ad absurdum* of Mary Wollstonecraft’s essay, written, as the author informs us, “to evince by demonstrative arguments the perfect equality of what is called the irrational species to the human.” The further opinion is expressed that “after those wonderful productions of Mr. Paine and Mrs. Wollstonecraft, such a theory as the

present seems to be necessary.” It was necessary; and a very short term of years sufficed to bring it into effect; indeed, the theory had already been put forward by several English pioneers of nineteenth-century humanitarianism.

To Jeremy Bentham, in particular, belongs the high honour of first asserting the rights of animals with authority and persistence.

“The legislator,” he wrote, “ought to interdict everything which may serve to lead to cruelty. The barbarous spectacles of gladiators no doubt contributed to give the Romans that ferocity which they displayed in their civil wars. A people accustomed to despise human life in their games could not be expected to respect it amid the fury of their passions. It is proper for the same reason to forbid every kind of cruelty towards animals, whether by way of amusement, or to gratify gluttony. Cock-fights, bull-baiting, hunting hares and foxes, fishing, and other amusements of the same kind, necessarily suppose either the absence of reflection or a fund of inhumanity, since they produce the most acute sufferings to sensible beings, and the most painful and lingering death of which we can form any idea. Why should the law refuse its protection to any sensitive being? The time will come when humanity will extend its mantle over everything which breathes. We have begun by attending to the condition of slaves; we shall finish by softening that of all the animals which assist our labours or supply our wants.”^[4]

So, too, wrote one of Bentham’s contemporaries: “The grand source of the unmerited and superfluous misery of beasts exists in a defect in the constitution of all communities. No human government, I believe, has ever recognized the *jus animalium*, which ought surely to form a part of the jurisprudence of every system founded on the principles of justice and humanity.”^[5] A number of later moralists have followed on the same lines, with the result that the rights of animals have already, to a certain limited extent, been established both in private usage and by legal enactment.

It is interesting to note the exact commencement of this new principle in law. When Lord Erskine, speaking in the House of Lords in 1811, advocated the cause of justice to the lower animals, he was greeted with loud cries of insult and derision. But eleven years later the efforts of the

despised humanitarians, and especially of Richard Martin, of Galway, were rewarded by their first success. The passing of the Ill-treatment of Cattle Bill, commonly known as “Martin’s Act,” in July, 1822, is a memorable date in the history of humane legislation, less on account of the positive protection afforded by it, for it applied only to cattle and “beasts of burden,” than for the invaluable precedent which it created. From 1822 onward, the principle of that *jus animalium* for which Bentham had pleaded, was recognized, however partially and tentatively at first, by English law, and the animals included in the Act ceased to be the mere property of their owners; moreover the Act has been several times supplemented and extended during the past half century. It is scarcely possible, in the face of this legislation, to maintain that “rights” are a privilege with which none but human beings can be invested; for if *some* animals are already included within the pale of protection, why should not more and more be so included in the future?^[6]

For the present, however, what is most urgently needed is some comprehensive and intelligible principle, which shall indicate, in a more consistent manner, the true lines of man’s moral relation towards the lower animals. Hitherto even the leading advocates of animals’ rights seem to have shrunk from basing their claim on the only argument which can ultimately be held to be a sufficient one—the assertion that animals, as well as men, though, of course, to a far less extent than men, are possessed of a distinctive individuality, and therefore are in justice entitled to live their lives with a due measure of that “restricted freedom” to which Herbert Spencer alludes. It is of little use to claim “rights” for animals in a vague general way, if with the same breath we explicitly show our determination to subordinate those rights to anything and everything that can be construed into a human “want”; nor will it ever be possible to obtain full justice for the lower races so long as we continue to regard them as beings of a wholly different order, and to ignore the significance of their numberless points of kinship with mankind.

For example, it has been said by a well-known writer on the subject of humanity to animals^[7] that “the life of a brute, having no moral purpose, can best be understood ethically as representing the sum of its *pleasures*; and the obligation, therefore, of producing the pleasures of sentient creatures must be reduced, in their case, to the abstinence from unnecessary

destruction of life.” Now, with respect to this statement, I must say that the notion of the life of an animal having “no moral purpose” belongs to a class of ideas which cannot possibly be accepted by the advanced humanitarian thought of the present day—it is a purely arbitrary assumption, at variance with our best science, and absolutely fatal (if the subject be clearly thought out) to any full realization of animals’ rights. If we are ever going to do justice to the lower races, we must get rid of the antiquated notion of a “great gulf” fixed between them and mankind, and must recognize the common bond of humanity that unites all living beings in one universal brotherhood.

As far as any excuses can be alleged, in explanation of the insensibility or inhumanity of the western nations in their treatment of animals, these excuses may be mostly traced back to one or the other of two theories, wholly different in origin, yet alike in this—that both postulate an absolute difference of nature between men and the lower kinds.

The first is the so-called “religious” notion, which awards immortality to man, but to man alone, thereby furnishing (especially in Catholic countries) a quibbling justification for acts of cruelty to animals, on the plea that they “have no souls.” “It should seem,” says Mrs. Jameson,^[8] “as if the primitive Christians, by laying so much stress upon a future life, in contradistinction to *this* life, and placing the lower creatures out of the pale of hope, placed them at the same time out of the pale of sympathy, and thus laid the foundation for this utter disregard of animals in the light of our fellow-creatures.”

I am aware that a quite contrary argument has, in a few isolated instances, been founded on the belief that animals have “no souls.” “Cruelty to a brute,” says an old writer,^[9] “is an injury irreparable,” because there is no future life to be a compensation for present afflictions; and there is an amusing story, told by Mr. Lecky in his “History of European Morals,” of a certain humanely-minded Cardinal, who used to allow vermin to bite him without hindrance, on the ground that “we shall have heaven to reward us for our sufferings, but these poor creatures have nothing but the enjoyment of this present life.” But this is a rare view of the question which need not, I think, be taken into very serious account; for, on the whole, the denial of immortality to animals (unless, of course, it be also denied to men) tends strongly to lessen their chance of being justly and considerately treated.

Among the many humane movements of the present age, none is more significant than the growing inclination, noticeable both in scientific circles and in religious, to believe that mankind and the lower animals have the same destiny before them.^[10]

The second and not less fruitful source of modern inhumanity is to be found in the “Cartesian” doctrine—the theory of Descartes and his followers—that the lower animals are devoid of consciousness and feeling; a theory which carried the “religious” notion a step further, and deprived the animals not only of their claim to a life hereafter, but of anything that could, without mockery, be called a life in the present, since mere “animated machines,” as they were thus affirmed to be, could in no real sense be said to *live* at all! Well might Voltaire turn his humane ridicule against this most monstrous contention, and suggest, with scathing irony, that God “had given the animals the organs of feeling, to the end that they might *not* feel!” “The theory of animal automatism,” says Professor Romanes, “which is usually attributed to Descartes, can never be accepted by common sense.” Yet it is to be feared that it has done much, in its time, to harden “scientific” sense against the just complaints of the victims of human arrogance and oppression.^[11]

Let me here quote a most impressive passage from Schopenhauer.

“The unpardonable forgetfulness in which the lower animals have hitherto been left by the moralists of Europe is well known. It is pretended that the beasts have no rights. They persuade themselves that our conduct in regard to them has nothing to do with morals, or (to speak the language of their morality) that we have no duties towards animals: a doctrine revolting, gross, and barbarous, peculiar to the west, and having its root in Judaism. In philosophy, however, it is made to rest upon a hypothesis, admitted in despite of evidence itself, of an absolute difference between man and beast. It is Descartes who has proclaimed it in the clearest and most decisive manner; and in fact it was a necessary consequence of his errors. The Cartesian-Leibnitzian-Wolfian philosophy, with the assistance of entirely abstract notions, had built up the ‘rational psychology,’ and constructed an immortal *anima rationalis*: but, visibly, the world of beasts, with its very natural claims, stood up against this exclusive

monopoly—this *brevet* of immortality decreed to man alone—and silently Nature did what she always does in such cases—she protested. Our philosophers, feeling their scientific conscience quite disturbed, were forced to attempt to consolidate their ‘rational psychology’ by the aid of empiricism. They therefore set themselves to work to hollow out between man and beast an enormous abyss, of an immeasurable width; by this they wish to prove to us, in contempt of evidence, an impassable difference.”^[12]

The fallacious idea that the lives of animals have no moral purpose is at root connected with these religious and philosophical pretensions which Schopenhauer so powerfully condemns. To live one’s own life—to realize one’s true self—is the highest moral purpose of man and animal alike; and that animals possess their due measure of this sense of individuality is scarcely open to doubt. “We have seen,” says Darwin, “that the senses and intuitions, the various emotions and faculties, such as love, memory, attention, curiosity, imitation, reason, etc., of which man boasts, may be found in an incipient, or even sometimes in a well-developed condition, in the lower animals.”^[13] Not less emphatic is the testimony of the Rev. J. G. Wood, who, speaking from a great experience, gives it as his opinion that “the manner in which we ignore individuality in the lower animals is simply astounding.” He claims for them a future life, because he is “quite sure that most of the cruelties which are perpetrated on the animals are due to the habit of considering them as mere machines without susceptibilities, without reason, and without the capacity of a future.”^[14]

The long-maintained distinction between human “reason” and animal “instinct” is being given up by recent scientific writers, as, for example, by Dr. Wesley Mills in his work on “The Nature and Development of Animal Intelligence,” and by Mr. E. P. Evans in “Evolutional Ethics and Animal Psychology.”

“The trend of investigation,” says Dr. Mills, “thus far goes to show that at least the germ of every human faculty does exist in some species of animal.... Formerly the line was drawn at reason. It was said that the ‘brutes’ cannot reason. Only persons who do not themselves reason about the subject with the facts

before them can any longer occupy such a position. The evidence of reasoning power is overwhelming for the upper ranks of animals, and yearly the downward limits are being extended the more the inferior tribes are studied.”

We have to get rid, as Mr. Evans points out, of those “anthropocentric” delusions which “treat man as a being essentially different and inseparably set apart from all other sentient creatures, to which he is bound by no ties of mental affinity or moral obligation.”

“Man is as truly a part and product of Nature as any other animal, and this attempt to set him up as an isolated point outside of it is philosophically false and morally pernicious.”

This, then, is the position of those who assert that animals, like men, are possessed of certain limited rights, which cannot be withheld from them, as they are now withheld, without tyranny and injustice. They have individuality, character, reason; and to have those qualities is to have the right to exercise them, in so far as surrounding circumstances permit. No human being is justified in regarding an animal as a meaningless automaton, to be worked, or tortured, or eaten, as the case may be, for the mere object of satisfying the wants or whims of mankind. Together with the destinies and duties that are laid on them and fulfilled by them, animals have also the right to be treated with gentleness and consideration, and the man who does not so treat them, however great his learning or influence may be, is, in that respect, an ignorant and foolish man, devoid of the highest and noblest culture of which the human mind is capable.

Something must here be said on the important subject of nomenclature. It is to be feared that the ill-treatment of animals is largely caused—or at any rate the difficulty of amending that treatment is largely aggravated—by the common use of such terms as “brute-beast,” “live-stock,” etc., which implicitly deny to the lower races that intelligent individuality which is undoubtedly possessed by them. It was long ago remarked by Bentham, in his “Introduction to Principles of Morals and Legislation,” that, whereas human beings are styled *persons*, “other animals, on account of their interests having been neglected by the insensibility of the ancient jurists, stand degraded into the class of *things*”; and Schopenhauer also has commented on the mischievous absurdity of the idiom which applies the

neuter pronoun “it” to such highly-organized animals as the dog and the ape.

A word of protest is needed also against such an expression as “dumb animals,” which, though often cited as “an immense exhortation to pity,”^[15] has in reality a tendency to influence ordinary people in quite the contrary direction, inasmuch as it fosters the idea of an impassable barrier between mankind and their dependents. It is convenient to us men to be deaf to the entreaties of the victims of our injustice; and, by a sort of grim irony, we therefore assume that it is *they* who are afflicted by some organic incapacity—they are “dumb animals,” forsooth! although a moment’s consideration must prove that they have innumerable ways, often quite human in variety and suggestiveness, of uttering their thoughts and emotions. Even the term “animals,” as applied to the lower races, is incorrect, and not wholly unobjectionable, since it ignores the fact that *man* is an animal no less than they. My only excuse for using it in this volume is that there is no better brief term available.

So anomalous is the attitude of man towards the lower animals, that it is no marvel if many humane thinkers have wellnigh despaired over this question. “The whole subject of the brute creation,” wrote Dr. Arnold, “is to me one of such painful mystery, that I dare not approach it”; and this (to put the most charitable interpretation on their silence) appears to be the position of the majority of moralists and teachers at the present time. Yet there is urgent need of some solution of the problem; and in no other way can this be found than by the admission of the lower races within the pale of human sympathy. All the promptings of our best and surest instincts point us in this direction. “It is abundantly evident,” says Lecky, “both from history and from present experience, that the instinctive shock, or natural feelings of disgust, caused by the sight of the sufferings of men, is not generically different from that which is caused by the sight of the suffering of animals.” If this be so, can it be seriously contended that the same humanitarian tendency which has already emancipated the slave, will not ultimately benefit the lower races also? Here, again, the historian of “European Morals” has a significant remark:

“At one time the benevolent affections embrace merely the family, soon the circle expanding includes first a class, then a nation, then a coalition of nations, then all humanity; and finally

its influence is felt in the dealings of man with the animal world. In each of these cases a standard is formed, different from that of the preceding stage, but in each case the same tendency is recognized as virtue.”

But, it may be argued, vague sympathy with the lower animals is one thing, and a definite recognition of their “rights” is another; what reason is there to suppose that we shall advance from the former phase to the latter? Just this; that every great liberating movement has proceeded exactly on such lines. Oppression and cruelty are invariably founded on a lack of imaginative sympathy; the tyrant or tormentor can have no true sense of kinship with the victim of his injustice. When once the sense of affinity is awakened, the knell of tyranny is sounded, and the ultimate concession of “rights” is simply a matter of time. The present condition of the more highly-organized domestic animals is in many ways very analogous to that of the negro slaves of a hundred years ago: look back, and you will find in their case precisely the same exclusion from the common pale of humanity; the same hypocritical fallacies, to justify that exclusion; and, as a consequence, the same deliberate stubborn denial of their social “rights.” Look back—for it is well to do so—and then look forward, and the moral can hardly be mistaken.

We find so great a thinker as Aristotle seriously pondering, in his “Ethics,” whether a slave may be considered as a fellow-being. In emphasizing the point that friendship is founded on propinquity, he expresses himself as follows:

“Neither can men have friendships with horses, cattle, or slaves, considered merely as such; for a slave is merely a living instrument, and an instrument a lifeless slave. Yet, considered as a man, a slave may be an object of friendship, for certain rights seem to belong to all those capable of participating in law and engagement.”

Slaves, says Bentham,

“have been treated by the law exactly upon the same footing as in England, for example, the inferior races of animals are still. The day may come when the rest of the animal creation may

acquire those rights which could never have been withheld from them but by the hand of tyranny.”

Let us unreservedly admit the immense difficulties that stand in the way of this animal enfranchisement. Our relation towards the animals is complicated and embittered by innumerable habits handed down through centuries of brutality and mistrust; we cannot, in all cases, suddenly relax these habits, or do full justice even where we see that justice will have to be done. A perfect ethic of humaneness is therefore impracticable, if not unthinkable; and we can attempt to do no more than to indicate in a general way the main principle of animals' rights, noting at the same time the most flagrant particular violations of those rights, and the lines on which the only valid reform can hereafter be effected. But, on the other hand, it may be remembered, for the comfort and encouragement of humanitarian workers, that these obstacles are, after all, only such as are inevitable in each branch of social improvement; for at every stage of every great reformation it has been repeatedly argued, by indifferent or hostile observers, that further progress is impossible; indeed, when the opponents of a great cause begin to demonstrate its “impossibility,” experience teaches us that that cause is already on the high road to fulfilment.

As for the demand so frequently made on reformers, that they should first explain the details of their scheme—how this and that point will be arranged, and by what process all kinds of difficulties, real or imagined, will be circumvented—the only rational reply is that it is absurd to expect to see the end of a question when we are now but at its beginning. The persons who offer this futile sort of criticism are usually those who under no circumstances would be open to conviction; they purposely ask for an explanation which, by the very nature of the case, is impossible because it necessarily belongs to a later period of time. It would be equally sensible to request a traveller to enumerate beforehand all the particular things he will see by the way, on pain of being denounced as an unpractical visionary, although he may have a quite sufficient general knowledge of his course and destination.

Our main principle is now clear. If “rights” exist at all—and both feeling and usage indubitably prove that they do exist—they cannot be consistently awarded to men and denied to animals, since the same sense of justice and compassion apply in both cases. “Pain is pain,” says Humphry Primatt,

“whether it be inflicted on man or on beast; and the creature that suffers it, whether man or beast, being sensible of the misery of it while it lasts, suffers *evil*; and the sufferance of evil, unmeritedly, unprovokedly, where no offence has been given, and no good can possibly be answered by it, but merely to exhibit power or gratify malice, is Cruelty and Injustice in him that occasions it.”

I commend this outspoken utterance to the attention of those ingenious moralists who quibble about the “discipline” of suffering, and deprecate immediate attempts to redress what, it is alleged, may be a necessary instrument for the attainment of human welfare. It is perhaps a mere coincidence, but it may be observed that those who are most forward to disallow the rights of others, and to argue that suffering and subjection are the natural lot of all living things, are usually themselves exempt from the operation of this beneficent law, and that the beauty of self-sacrifice is most loudly belauded by those who profit most largely at the expense of their fellow-beings.

But “nature is one with rapine,” say some, and this utopian theory of “rights,” if too widely extended, must come in conflict with that iron rule of internecine competition by which the universe is regulated. But is the universe so regulated? We note that this very objection, which was confidently relied on a few years back by many opponents of the emancipation of the working-classes, is not heard of in that connection now. Our learned economists and men of science, who set themselves to play the defenders of the social *status quo*, have seen their own weapons of “natural selection,” “survival of the fittest,” and what not, snatched from their hands and turned against them, and are therefore beginning to explain to us, in a scientific manner, what we untutored humanitarians had previously felt to be true, viz., that competition is not by any means the sole governing law among the human race. We are not greatly dismayed, then, to find the same old bugbear trotted out as an argument against animals’ rights—indeed, we see already unmistakable signs of a similar reversal of the scientific judgment.^[16]

The charge of “sentimentalism” is frequently brought against those who plead for animals’ rights. Now “sentimentalism,” if any meaning at all can be attached to the word, must signify an inequality, an ill balance of sentiment, an inconsistency which leads men into attacking one abuse,

while they ignore or condone another where a reform is equally desirable. That this weakness is often observable among “philanthropists” on the one hand, and “friends of animals” on the other, and most of all among those acute “men of the world,” whose regard is only for themselves, I am not concerned to deny; what I wish to point out is, that the only real safeguard against sentimentality is to take up a consistent position towards the rights of men and of the lower animals alike, and to cultivate a broad sense of universal justice (not “mercy”) for all living things. Herein, and herein alone, is to be sought the true sanity of temperament.

It is an entire mistake to suppose that the rights of animals are in any way antagonistic to the rights of men. Let us not be betrayed for a moment into the specious fallacy that we must study human rights first, and leave the animal question to solve itself hereafter; for it is only by a wide and disinterested study of *both* subjects that a solution of either is possible. “For he who loves all animated nature,” says Porphyry, “will not hate any one tribe of innocent beings, and by how much greater his love for the whole, by so much the more will he cultivate justice towards a part of them, and that part to which he is most allied.” To omit all worthier reasons, it is too late in the day to suggest the indefinite postponement of a consideration of animals’ rights, for from a moral point of view, and even from a legislative point of view, we are daily confronted with the problem, and the so-called “practical” people who affect to ignore it are simply shutting their eyes to facts which they find it disagreeable to confront.

Once more then, animals have rights, and these rights consist in the “restricted freedom” to live a natural life—a life, that is, which permits of the individual development—subject to the limitations imposed by the permanent needs and interests of the community. There is nothing quixotic or visionary in this assertion; it is perfectly compatible with a readiness to look the sternest laws of existence fully and honestly in the face. If we must kill, whether it be man or animal, let us kill and have done with it; if we must inflict pain, let us do what is inevitable, without hypocrisy, or evasion, or cant. But (here is the cardinal point) let us first be assured that it *is* necessary; let us not wantonly trade on the needless miseries of other beings, and then attempt to lull our consciences by a series of shuffling excuses which cannot endure a moment’s candid investigation. As Leigh Hunt well says:

“That there is pain and evil, is no rule
That I should make it greater, like a fool.”

Thus far the general principle of animals' rights. We will now proceed to apply this principle to a number of particular cases, from which we may learn something both as to the extent of its present violation, and the possibility of its better observance in the future.

CHAPTER II.

THE CASE OF DOMESTIC ANIMALS.

THE main principle of animals' rights, if admitted to be fundamentally sound, will not be essentially affected by the wildness or the domesticity, as the case may be, of the animals in question; *both* classes have their rights, though these rights may differ largely in extent and importance. It is convenient, however, to consider the subject of the domestic animals apart from that of the wild ones, inasmuch as their whole relation to mankind is so much altered and emphasized by the fact of their subjection. Here, at any rate, it is impossible, even for the most callous reasoners, to deny the responsibility of man, in his dealings with vast races of beings, the very conditions of whose existence have been modified by human civilization.

An incalculable mass of drudgery, at the cost of incalculable suffering, is daily, hourly performed for the benefit of man by these honest, patient labourers in every town and country of the world. Are these countless services to be permanently ignored in a community which makes any pretension to a humane civilization? Will the free citizens of the enlightened republics of the future be content to reap the immense advantages of animals' labour, without recognizing that they owe them some consideration in return? The question is one that carries with it its own answer.^[17]

But the human mind is subtle to evade the full significance of its duties, and nowhere is this more conspicuously seen than in our treatment of the lower races. Given a position in which man profits largely (or *thinks* he profits largely, for it is not always a matter of certainty) by the toil or suffering of the animals, and our respectable moralists are pretty sure to be explaining to us that this providential arrangement is "better for the animals themselves." The wish is father to the thought in these questions, and there is an accommodating elasticity in our social ethics that permits of the justification of almost any system which it would be inconvenient to us to discontinue. Thus we find it stated, and on the authority of a bishop, that man may "lay down the terms of the social contract between animals and

himself,” because, forsooth, “the general life of a domestic animal is one of very great comfort—according to the animal’s own standard (*sic*) probably one of almost perfect happiness.”^[18]

Now this prating about “the animal’s own standard” is nothing better than hypocritical cant. If man is obliged to lay down the terms of the contract, let him at least do so without having recourse to such a suspiciously opportune afterthought. We have taken the animals from a free, natural state, into an artificial thralldom, in order that *we*, and not *they*, may be the gainers thereby; it cannot possibly be maintained that they owe us gratitude on this account, or that this alleged debt may be used as a means of evading the just recognition of their rights. It is the more necessary to raise a strong protest against this jesuitical mode of reasoning, because, as we shall see, it is so frequently employed, in one form or another, by the apologists of human tyranny.

On the other hand, I desire to keep clear also of the extreme contrary contention, that man is not morally justified in imposing any sort of subjection on the lower animals.^[19] An abstract question of this sort, however interesting as a speculation, and impossible in itself to disprove, is beyond the scope of the present inquiry, which is primarily concerned with the state of things at present existing. We must face the fact that the services of domestic animals have become, whether rightly or wrongly, an integral portion of the system of modern society; we cannot immediately dispense with those services, any more than we can dispense with human labour itself. But we *can* provide, as at least a present step towards a more ideal relationship in the future, that the conditions under which all labour is performed, whether by men or by animals, shall be such as to enable the worker to take some appreciable pleasure in the work, instead of experiencing a lifelong course of injustice and ill-treatment.

And here it may be convenient to say a word as to the existing line of demarcation between the animals legally recognized as “domestic,” and those *feræ naturæ*, of wild nature. In the Act of 1849, in which a penalty was imposed for cruelty to “any animal,” it was expressly provided that

“The word *animal* shall be taken to mean any horse, mare, gelding, bull, ox, cow, heifer, steer, calf, mule, ass, sheep, lamb, hog, pig, sow, goat, dog, cat, or any other domestic animal.”

But as time went on, and public opinion was more sensitive, the interpretation of this vague reference to “any other domestic animal” became a point of considerable importance, since it closely affected the welfare of certain captive animals which, though regarded as wild, and therefore outside the pale of protection, were to all intents and purposes in a state of domestication. The Act of 1849 was accordingly amended by the Wild Animals in Captivity Act of 1900, which made it an offence to maltreat a wild animal while actually in a state of captivity. (*See also* the Act of 1911, *infra* p. 34.)

“Food, rest, and tender usage,” were declared by Humphry Primatt, the old author already quoted, to be the three rights of the domestic animals. Lawrence’s opinion was to much the same effect.

“Man is indispensably bound to bestow upon animals, in return for the benefit he derives from their services, good and sufficient nourishment, comfortable shelter, and merciful treatment; to commit no wanton outrage upon their feelings, whilst alive, and to put them to the speediest and least painful death, when it shall be necessary to deprive them of life.”

But it is important to note that something more is due to animals, and especially to domestic animals, than the mere supply of provender and the mere immunity from ill-usage. “We owe justice to men,” wrote Montaigne, “and grace and benignity to other creatures that are capable of it; there is a natural commerce and mutual obligation betwixt them and us.” Sir Arthur Helps admirably expressed this sentiment in his well-known reference to the duty of “using courtesy to animals.”^[20]

If these be the rights of domestic animals, it is pitiful to reflect how commonly and how grossly they are violated. The average life of our “beasts of burden,” the horse, the ass, and the mule, is from beginning to end a rude negation of their individuality and intelligence; they are habitually addressed and treated as stupid instruments of man’s will and pleasure, instead of the highly-organized and sensitive beings that they are. Well might Thoreau, the humanest and most observant of naturalists, complain of man’s “not educating the horse, not trying to develop his nature, but merely getting work out of him”; for such, it must be acknowledged, is the prevalent method of treatment, in ninety-nine cases

out of a hundred, at the present day, even where there is no actual cruelty or ill-usage.

We are often told that there is no other western country where tame animals are so well treated as in England, and it is only necessary to read the records of a century back to see that the inhumanities of the past were far more atrocious than any that are still practised in the present. Let us be thankful for these facts, as showing that the current of English opinion is at least moving in the right direction. But it must yet be said that the sights that everywhere meet the eye of a humane and thoughtful observer, whether in town or country, are a disgrace to our vaunted “civilization.” Watch the cab traffic in one of the crowded thoroughfares of our great cities—always the same lugubrious patient procession of underfed overloaded animals, the same brutal insolence of the drivers, the same accursed sound of the whip. And remembering that these horses are gifted with a large degree of sensibility and intelligence, must one not feel that the fate to which they are thus mercilessly subjected is a shameful violation of the principle which moralists have laid down?

Yet it is to this fate that even the well-kept horses of the rich must in time descend, so to pass the declining years of a life devoted to man’s service! “A good man,” said Plutarch, “will take care of his horses and dogs, not only while they are young, but when old and past service. We ought certainly not to treat living beings like shoes and household goods, which, when worn out with use, we throw away.” Such was the feeling of the old pagan writer, and our good Christians of the present age scarcely seem to have improved on it. True, they do not “throw away” their superannuated carriage-horses—it is so much more lucrative to *sell* them to the shopman or cab-proprietor, who will in due course pass them on to the knacker and cat’s-meat man.

The use of machinery is often condemned, on æsthetic grounds, because of the ugliness it has introduced into so many features of modern life. On the other hand, it should not be forgotten that it has immensely relieved the huge mass of animal labour, and that when such forces are generally used for purposes of traction, one of the foulest blots on our social humanity is likely to disappear. Scientific and mechanical invention, so far from being necessarily antagonistic to a true beauty of life, may be found to be of the utmost service to it, when they are employed for humane and not merely

commercial, purposes.^[21] Herein Thoreau is a wiser teacher than Ruskin. “If all were as it seems,” he says, “and men made the elements their servants for noble ends! If the cloud that hangs over the engine were the perspiration of heroic deeds, or as beneficent as that which floats over the farmer’s fields, then the elements and Nature herself would cheerfully accompany men on their errands and be their escort.”

It is no part of my purpose to enumerate the various acts of injustice of which domestic animals are the victims; it is sufficient to point out that the true cause of such injustice is to be sought in the unwarrantable neglect of their many intelligent qualities, and in the contemptuous indifference which, in defiance of sense and reason, still classes them as “brute-beasts.” What has been said of horses in this respect applies still more strongly to the second class of domestic animals. Sheep, goats, and oxen are regarded as mere “live-stock”; while pigs, poultry, rabbits, and other marketable “farm-produce,” meet with even less consideration, and are constantly treated with brutal inhumanity by their human possessors. Let anyone who doubts this pay a visit to a cattle-market, and study the scenes that are enacted there.

The question of the castration of animals may here be briefly referred to.^[22] That nothing but imperative necessity could justify such a practice must, I think, be admitted; for mutilation of this kind is not only painful in itself, but deprives those who undergo it of the most vigorous and spirited elements of their character. It is said—with what precise amount of truth I cannot pretend to determine—that man would not otherwise be able to maintain his dominion over the domestic animals; but on the other hand it may be pointed out that this dominion is in no case destined to be perpetuated in its present sharply-accentuated form, and that various practices which, in a sense, are “necessary” now,—*i.e.* in the false position and relationship in which we stand towards the animals,—will doubtless be gradually discontinued under the humaner system of the future. Moreover, castration as performed on cattle, sheep, pigs, and fowls, with no better object than to increase their size and improve their flavour for the table, is, even at the present time, utterly needless and unjustifiable. “The bull,” as Shelley says, “must be degraded into the ox, and the ram into the wether, by an unnatural and inhuman operation, that the flaccid fibre may offer a fainter resistance to rebellious nature.” In all its aspects, this is a

disagreeable subject, and one about which the majority of people do not care to think—probably from an unconscious perception that the established custom could scarcely survive the critical ordeal of thought.

There remains one other class of domestic animals, viz., those who have become still more closely associated with mankind through being the inmates of their homes. The dog is probably better treated on the whole than any other animal;^[23] though, to prove how far we still are from a rational and consistent appreciation of his worth, it is only necessary to point to the fact that he is commonly regarded by a large number of educated people as a fit and proper subject for that experimental torture which is known as vivisection. The cat has always been treated with far less consideration than the dog, and, despite the numerous scattered instances that might be cited to the contrary, it is to be feared that De Quincey was in the main correct, when he remarked that “the groans and screams of this poor persecuted race, if gathered into some great echoing hall of horrors, would melt the heart of the stoniest.” The institution of “Homes” for lost and starving dogs and cats is a welcome sign of the humane feeling that is asserting itself in some quarters; but it is also no less a proof of the general indifferentism which can allow the most familiar domestic animals to become homeless.

It may be doubted, indeed, whether the condition of the household “pet” is, in the long run, more enviable than that of the “beast of burden.” Pets, like kings’ favourites, are usually the recipients of an abundance of sentimental affection but of little real kindness; so much easier is it to give temporary caresses than substantial justice. It seems to be forgotten, in a vast majority of cases, that a domestic animal does not exist for the mere idle amusement, any more than for the mere commercial profit, of its human owner; and that for a living being to be turned into a useless puppet is only one degree better than to be doomed to the servitude of a drudge. The injustice done to the pampered lap-dog is as conspicuous, in its way, as that done to the over-worked horse, and both spring from one and the same origin—the fixed belief that the life of a “brute” has no moral purpose, no distinctive personality worthy of due consideration and development. In a society where the lower animals were regarded as intelligent beings, and not as animated machines, it would be impossible for this incongruous absurdity to continue.

This, then, appears to be our position as regards the rights of domestic animals. Waiving, on the one hand, the somewhat abstruse question whether man is morally justified in utilizing animal labour at all, and on the other the fatuous assertion that he is constituting himself a benefactor by so doing, we recognize that the services of domestic animals have by immemorial usage become an important and, it may even be said, necessary element in the economy of modern life. It is impossible, unless every principle of justice is to be cast to the winds, that the due requital of these services should remain a matter of personal caprice; for slavery is at all times hateful and iniquitous, whether it be imposed on mankind or on the lower races. Apart from the rights they possess in common with all intelligent beings, domestic animals have a special claim on man's courtesy and sense of fairness, inasmuch as they are not his fellow-creatures only, but his fellow-workers, his dependents, and in many cases the familiar associates and trusted inmates of his home.

CHAPTER III.

THE CASE OF WILD ANIMALS.

THAT wild animals, no less than domestic animals, have their rights, albeit of a less positive character and far less easy to define, is an essential point which follows directly from the acceptance of the general principle of a *jus animalium*. It is of the utmost importance to emphasize the fact that, whatever the *legal* fiction may have been, or may still be, the rights of animals are not *morally* dependent on the so-called rights of property.

The domination of property has left its trail indelibly on the records of this question. Until the passing of “Martin’s Act” in 1822, the most atrocious cruelty, even to domestic animals, could only be punished where there was proved to be an infringement of the rights of ownership. Some measure of legal protection was, as I have said, accorded to wild animals in the Wild Animals in Captivity Act of 1900, which was repealed, re-enacted, and extended in the Protection of Animals Act, 1911; which Act was itself strengthened by an Amendment passed in 1921, prohibiting the coursing or hunting of a wild animal in an enclosed space from which it has no reasonable chance of escape. With this exception, it is permissible for anyone to kill or torture them with impunity, except where the sacred privileges of “property” are thereby offended. “Everywhere,” it has been well said, “it is absolutely a capital crime to be an unowned creature.”

Yet surely an unowned creature has the same right as another to live his life unmolested and uninjured except when this is in some way inimical to human welfare. We are justified by the strongest of all instincts, that of self-defence, in safe-guarding ourselves against such a multiplication of any species of animal as might imperil the established supremacy of man; but we are *not* justified in unnecessarily killing—still less in torturing—any harmless being whatsoever. In this respect the position of wild animals, in their relation to man, is somewhat analogous to that of the uncivilized towards the civilized nations. Nothing is more difficult than to determine precisely to what extent it is morally permissible to interfere with the autonomy of savage tribes—an interference which seems in some cases to

conduce to the general progress of the race, in others to foster the worst forms of cruelty and injustice; but it is beyond question that savages, like other people, have the right to be exempt from all wanton insult and degradation.

In the same way, while admitting that man is justified, by the exigencies of his own destiny, in asserting his supremacy over the wild animals, we must deny him any right to turn his protectorate into a tyranny, or to inflict one atom more of subjection and pain than is absolutely unavoidable. To take advantage of the sufferings of animals, whether wild or tame, for the gratification of sport, or gluttony, or fashion, is quite incompatible with any possible assertion of animals' rights. We may kill, if necessary, but never torture or degrade.

“The laws of self-defence,” says an old writer,^[24] “undoubtedly justify us in destroying those animals who would destroy us, who injure our properties or annoy our persons; but not even these, whenever their situation incapacitates them from hurting us. I know of no right which we have to shoot a bear on an inaccessible island of ice, or an eagle on the mountain's top, whose lives cannot injure us, nor deaths procure us any benefit. We are unable to give life, and therefore ought not to take it away from the meanest insect without sufficient reason.”

I reserve, for fuller consideration in subsequent chapters, certain problems which are suggested by the wholesale slaughter of wild animals by the huntsman or the trapper, for purposes which are loosely supposed to be inevitable. Meantime a word must be said about the condition of those tamed or caged animals which, though wild by nature, and not bred in captivity, are yet to a certain extent “domesticated”—a class which stands midway between the true domestic and the wild. Is the imprisonment of such animals a violation of the principle we have laid down? In most cases I fear this question can only be answered in the affirmative.

And here, once more I must protest against the common assumption that these captive animals are laid *under an obligation* to man by the very fact of their captivity, and that therefore no complaint can be made on the score of their loss of freedom and the many miseries involved therein! It is extraordinary that even humane thinkers and earnest champions of animals'

rights should permit themselves to be misled by this most fallacious and flimsy line of argument. “Harmful animals,” says one of these writers,^[25] “and animals with whom man has to struggle for the fruits of the earth, may of course be so shut up: they gain by it, for otherwise they would not have been let live.”

And so in like manner it is sometimes contended that a menagerie is a sort of paradise for wild beasts, whose loss of liberty is more than compensated by the absence of the constant apprehension and insecurity which, it is conveniently assumed, weigh so heavily on their spirits. But all this notion of their “gaining by it” is in truth nothing more than a mere arbitrary supposition; for, in the first place, a speedy death may, for all we know, be very preferable to a protracted death-in-life; while, secondly, the pretence that wild animals enjoy captivity is even more absurd than the episcopal contention that the life of a domestic animal is “one of very great comfort, according to the animal’s own standard.”

To take a wild animal from its free natural state, full of abounding egoism and vitality, and to shut it up for the wretched remainder of its life in a cell where it has just space to turn round, and where it necessarily loses every distinctive feature of its character—this appears to me to be as downright a denial as could well be imagined of the theory of animals’ rights. Nor is there much force in the plea founded on the alleged scientific value of these zoological institutions, at any rate in the case of the wilder and less tractable animals, for it cannot be maintained that the establishment of wild-beast shows is in any way necessary for the advancement of human knowledge. For what do the good people see, who go to the gardens on a half-holiday afternoon to poke their umbrellas at a blinking eagle-owl, or to throw dog-biscuits down the expansive throat of a hippopotamus? Not wild beasts or wild birds certainly, for there never have been or can be such in the best of all possible menageries, but merely the outer semblances and *simulacra* of the denizens of forest and prairie—poor spiritless remnants of what were formerly wild animals. To kill and stuff these victims of our morbid curiosity, instead of immuring them in lifelong imprisonment, would be at once a humaner and a cheaper method, and could not possibly be of less use to science.^[26]

But of course these remarks do not apply, with anything like the same force, to the taming of such wild animals as are readily domesticated in captivity,

or trained by man to some intelligible and practical purpose. For example, though we may look forward to the time when it will not be deemed necessary to convert wild elephants into beasts of burden, it must be acknowledged that the exaction of such service, however questionable in itself, is very different from condemning an animal to a long term of useless and deadening imbecility. There can be no absolute standard of morals in these matters, whether it be human liberty or animal liberty that is at stake; I merely contend that it is as incumbent on us to show good reason for curtailing the one as the other. This would be at once recognized, but for the prevalent habit of regarding the lower animals as devoid of purpose and individuality.

The caging of wild song-birds is another practice which deserves the strongest reprobation. It is often pleaded that the amusement given by these unfortunate prisoners to the still more unfortunate human prisoners of the sick-room, or the smoky city, is a justification of their sacrifice; but surely such excuses rest only on habit—habitual inability or unwillingness to look facts in the face. Few invalids, I fancy, would be greatly cheered by the captive life that hangs at their window, if they had fully considered how blighted and sterilized a life it must be. The bird-catcher's trade and the bird-catcher's shop are alike full of horrors, and they are horrors which are due entirely to a silly fashion and a habit of callous thoughtlessness, not on the part of the ruffianly bird-catcher (ruffianly enough, too often) who has to bear the burden of the odium attaching to these cruelties, but of the respectable customers who buy captured larks and linnets without the smallest scruple or consideration.

Finally, let me point out that if we desire to cultivate a closer intimacy with the wild animals, it must be an intimacy based on a genuine love for them as living beings and fellow-creatures, not on the superior power or cunning by which we can drag them from their native haunts, warp the whole purpose of their lives, and degrade them to the level of pets, or curiosities, or captives. The sanctuaries which the parks of some large towns now afford to birds, squirrels, etc., suggest what our relations with wild animals *might* be, under more humane conditions.

Of all uses to which animals can be put—and this applies to the domesticated as well as to the wild—the silliest, perhaps, is that of training them to “perform.” The true interest of animal life lies in its naturalness;

and to see a dog, or horse, or lion performing a “trick” is a sight which ought to cause disgust rather than pleasure in any rational mind, especially as the process of training in most, if not in all cases, involves the practice of cruelty. Humane persons should discountenance every sort of entertainment in which animals are introduced, from the dancing bear in the village to the more elaborate but not less idiotic performances on the stage. Many of them are cruel; all of them are stupid; most of them are both.

CHAPTER IV.

THE SLAUGHTER OF ANIMALS FOR FOOD.

It is impossible that any discussion of the principle of animals' rights can be at all adequate or conclusive which ignores, as many so-called humanitarians still ignore, the immense underlying importance of the food question. The origin of the habit of flesh-eating need not greatly concern us; let us assume, in accordance with the most favoured theory, that animals were first slaughtered by the uncivilized migratory tribes under the stress of want, and that the practice thus engendered, being fostered by the religious idea of blood-offering and propitiation, survived and increased after the early conditions which produced it had passed away. What is more important to note, is that the very prevalence of the habit has caused it to be regarded as a necessary feature of modern civilization, and that this view has inevitably had a marked effect, and a very detrimental effect, on the study of man's moral relation to the lower animals.

Now it must be admitted, I think, that it is a difficult thing consistently to recognize or assert the rights of an animal on whom you purpose to make a meal, a difficulty which has not been at all satisfactorily surmounted by those moralists who, while accepting the practice of flesh-eating as an institution which is itself beyond cavil, have nevertheless been anxious to find some solid basis for a theory of humaneness. "Strange contrariety of conduct," says Goldsmith's "Chinese Philosopher," in commenting on this dilemma; "they pity, and they *eat* the objects of their compassion!" There is also the further consideration that the sanction implicitly given to the terrible cruelties inflicted on harmless cattle by the drover and the slaughterman render it, by parity of reasoning, wellnigh impossible to abolish many other acts of injustice that we see everywhere around us; and this obstacle the opponents of humanitarian reform have not been slow to utilize. Hence a disposition on the part of many humane writers to fight shy of the awkward subject of the slaughter-house, or to gloss it over with a series of contradictory and quite irrelevant excuses.

Let me give a few examples.

“We deprive animals of life,” says Bentham, in a delightfully naïve application of the utilitarian philosophy, “and this is justifiable; their pains do not equal our enjoyments.”

“By the scheme of universal providence,” says Lawrence, “the services between man and beast are intended to be reciprocal, and the greater part of the latter can by no other means requite human labour and care than by the forfeiture of life.”

Schopenhauer’s plea is somewhat similar to the foregoing:

“Man deprived of all flesh-food, especially in the north, would suffer more than the animal suffers in a swift and unforeseen death; still we ought to mitigate it by the help of chloroform.”

Then there is the argument so frequently founded on the supposed sanction of Nature.

“My scruples,” wrote Lord Chesterfield, “remained unreconciled to the committing of so horrid a meal, till upon serious reflection I became convinced of its legality from the general order of Nature, which has instituted the universal preying upon the weaker as one of her first principles.”

Finally, we find the redoubtable Paley discarding as valueless the whole appeal to Nature, and relying on the ordinances of Holy Writ.

“A right to the flesh of animals. Some excuse seems necessary for the pain and loss which we occasion to animals by restraining them of their liberty, mutilating their bodies, and at last putting an end to their lives for our pleasure or convenience. The reasons alleged in vindication of this practice are the following: that the several species of animals being created to prey upon one another affords a kind of analogy to prove that the human species were intended to feed upon them.... Upon which reason I would observe that the analogy contended for is extremely lame, since animals have no power to support life by any other means, and since we have, for the whole human species might subsist entirely upon fruit, pulse, herbs, and roots, as many tribes of Hindus actually do.... It seems to me that it would be difficult to defend this right by any arguments which

the light and order of Nature afford, and that we are beholden for it to the permission recorded in Scripture.”

It is evident from the above quotations, which might be indefinitely extended, that the fable of the Wolf and the Lamb is constantly repeating itself in the attitude of our moralists and philosophers towards the victims of the slaughter-house. Far wiser and humaner, on this particular subject, is the tone adopted by such writers as Michelet, who, while not seeing any way of escape from the practice of flesh-eating, at least refrain from attempting to support it by fallacious reasonings.

“The animals below us have also their rights before God. Animal life, sombre mystery! Immense world of thoughts and of dumb sufferings! All nature protests against the barbarity of man, who misapprehends, who humiliates, who tortures his inferior brethren.... Life—death! The daily murder which feeding upon animals implies—those hard and bitter problems sternly placed themselves before my mind. Miserable contradiction! Let us hope that there may be another globe in which the base, the cruel fatalities of this may be spared to us.”^[27]

Meantime, however, the simple fact remains true, and is every year finding more and more scientific corroboration, that there is no such “cruel fatality” as that which Michelet imagined. Comparative anatomy has shown that man is not carnivorous, but frugivorous, in his natural structure; experience has shown that flesh-food is wholly unnecessary for the support of healthy life. The importance of this more general recognition of a truth which has in all ages been familiar to a few enlightened thinkers, can hardly be over-estimated in its bearing on the question of animals’ rights. It clears away a difficulty which has long damped the enthusiasm, or warped the judgment of the humaner school of European moralists, and makes it possible to approach the subject of man’s moral relation to the lower animals in a more candid and fearless spirit of enquiry. It is no part of my present purpose to advocate the cause of vegetarianism; but in view of the mass of evidence, readily obtainable, that the transit and slaughter of animals are necessarily attended by most atrocious cruelties, and that a large number of persons have for years been living healthily without the use of flesh-meat, it must at least be said that to omit this branch of the subject from the most earnest

and strenuous consideration is playing with the question of animals' rights. Fifty or a hundred years ago, there was perhaps some excuse for supposing that vegetarianism was a mere fad; there is absolutely no such excuse at the present time.

There are two points of especial significance in this connection. First, that as civilization advances, the cruelties inseparable from the slaughtering system have been aggravated rather than diminished, owing both to the increased necessity of transporting animals long distances by sea and land, under conditions of hurry and hardship which generally preclude any sort of humane regard for their comfort, and to the clumsy and barbarous methods of slaughtering too often practised in those ill-constructed dens of torment known as "private slaughter-houses."^[28]

Secondly, that the feeling of repugnance caused among all people of sensibility and refinement by the sight, or mention, or even thought, of the business of the butcher is also largely on the increase; so that the details of the revolting process are, as far as possible, kept carefully out of sight and out of mind, being delegated to a pariah class who do the work which most educated persons would shrink from doing for themselves. In these two facts we have clear evidence, first that there is good reason why the public conscience, or at any rate the humanitarian conscience, should be uneasy concerning the slaughter of "live-stock," and secondly that this uneasiness is already to a large extent developed and manifested.

The common argument, adopted by many apologists of flesh-eating, as of fox-hunting, that the pain inflicted by the death of the animals is more than compensated by the pleasure enjoyed by them in their life-time, since otherwise they would not have been brought into existence at all, is ingenious rather than convincing, being indeed none other than the old familiar fallacy already commented on—the arbitrary trick of constituting ourselves the spokesmen and the interpreters of our victims. Mr. E. B. Nicholson, for example, is of opinion that "we may pretty safely take it that if he [the fox] were able to understand and answer the question, he would choose life, with all its pains and risks, to non-existence without them."^[29] Unfortunately for the soundness of this suspiciously partial assumption, there is no recorded instance of this strange alternative having ever been submitted either to fox or philosopher; so that a precedent has yet to be established on which to found a judgment. Meantime, instead of

committing the gross absurdity of talking of non-existence as a state which is good, or bad, or in any way comparable to existence, we might do well to remember that animals' rights, if we admit them at all, must begin with the birth, and can only end with the death, of the animals in question, and that we cannot evade our just responsibilities by any such quibbling references to an imaginary ante-natal choice in an imaginary ante-natal condition.

The most mischievous effect of the practice of flesh-eating, in its influence on the study of animals' rights at the present time, is that it so stultifies and debases the very *raison d'être* of countless myriads of beings—it brings them into life for no better purpose than to deny their right to live. It is idle to appeal to the internecine warfare that we see in some aspects of wild nature, where the weaker animal is often the prey of the stronger, for there (apart from the fact that co-operation largely modifies competition) the weaker races at least live their own lives and take their chance in the game, whereas the victims of the human carnivora are bred, and fed, and from the first pre-destined to untimely slaughter, so that their whole mode of living is warped from its natural standard, and they are scarcely more than animated beef or mutton or pork. It has been well said that “to keep a man (slave or servant) for your own advantage merely, to keep an animal that you may *eat* it, is a lie. You cannot look that man or animal in the face.”^[30]

Vegetarianism, then, is the ideal towards which food-reformers must strive; and in the meantime something may be done by the improvement of methods of slaughtering. The advantages of the public over the private slaughter-house have repeatedly been demonstrated, as, for example, in the Report of the Tuberculosis Commission of 1898, and in the Report of the Commission appointed by the Admiralty “to consider the humane slaughtering of animals,” issued in 1904. Anyone who will compare the blundering, haphazard methods of many English slaughter-houses with the model abattoirs of Germany, Switzerland, and other Continental States, will at once see the pressing need of such reforms on the score of humanity.

The butchers' objections to the abattoir system arise from the usual trade prejudices, and from the fear that their interests would suffer; but private interests, real or imagined, should not be allowed to stand in the way of a reform which would in the long run benefit all classes of the community—not least the unhappy victims of the shambles. One thing is certain, that if all flesh-eaters could themselves see what goes on behind the scenes in

many private slaughter-houses, an end would soon be put to a system which is as barbarous as it is insanitary—a fruitful cause of cruelty to the animals and of danger to the public.

Reform of diet will doubtless be slow, and attended in many individual cases with its difficulties and drawbacks. But at least we may lay down this much as incumbent on all humanitarian thinkers—that everyone must satisfy himself of the necessity, the real necessity, of the use of flesh-food, before he comes to any conclusion on the subject of animals' rights. It is easy to see that, as the question is more and more discussed, the result will be more and more decisive. “Whatever my own practice may be,” wrote Thoreau, “I have no doubt that it is a part of the destiny of the human race, in its gradual improvement, to leave off eating animals, as surely as the savage tribes have left off eating each other when they came in contact with the more civilized.”

CHAPTER V.

SPORT, OR AMATEUR BUTCHERY.

THAT particular form of recreation which is euphemistically known as “sport” has a close historical connection with the practice of flesh-eating, inasmuch as the hunter was in old times what the butcher is now,—the “purveyor” on whom the family was dependent for its daily supply of victuals. Modern sport, however, as usually carried on in civilized European countries, has degenerated into what has been well described as “amateur butchery,” a system under which the slaughter of certain kinds of animals is practised less as a necessity than as a means of amusement and diversion. Just as the youthful nobles, during the savage scenes and reprisals of the Huguenot wars, used to seize the opportunity of exercising their swordsmanship, and perfecting themselves in the art of dealing graceful death-blows, so the modern sportsman converts the killing of animals from a prosaic and perhaps distasteful business into an agreeable and gentlemanly pastime.

Now, on the very face of it, this amateur butchery is, in one sense, the most wanton and indefensible of all possible violations of the principle of animals’ rights. If animals—or men, for that matter—have of necessity to be killed, let them be killed accordingly; but to seek one’s own *amusement* out of the death-pangs of other beings, this is saddening stupidity indeed! Wisely did Wordsworth inculcate as the moral of his “Hartleap Well,”

“Never to blend our pleasure or our pride
With sorrow of the meanest thing that feels.”

But the sporting instinct is due to sheer callousness and insensibility; the sportsman, by force of habit, or by force of hereditary influence, cannot understand or sympathize with the sufferings he causes, and being, in the great majority of instances, a man of slow perception, he naturally finds it much easier to follow the hounds than to follow an argument. And here, in his chief blame, lies also his chief excuse; for it may be said of him, as it cannot be said of certain other tormentors, that he really does not

comprehend the import of what he is doing. Whether this ultimately makes his position better or worse, is a point for the casuist to decide.

That “it would have to be killed anyhow” is a truly deplorable reason for torturing any animal whatsoever; it is an argument which would equally have justified the worst barbarities of the Roman amphitheatre. To exterminate wolves, and other dangerous species, may indeed, at certain places and times, be necessary and justifiable enough. But the sportsman nowadays will not even perform this practical service of exterminating such animals—the fox, for example—as are noxious to the general interests of the community; on the contrary, he “preserves” them (note the unintended humour of the term!), and then, by a happy afterthought, claims the gratitude of the animals themselves for his humane and benevolent interposition.^[31] In plain words, he first undertakes to rid the country of a pest, and then, finding the process an enjoyable one to himself, he contrives that it shall never be brought to a conclusion. Prometheus had precisely as much reason to be grateful to the vulture for eternally gnawing at his liver, as have the hunted animals to thank the predaceous sportsmen who “preserve” them. Let me once more enter a protest against the canting Pharisaism which is afraid to take the just responsibility of its own selfish pleasure-seeking.

“What name should we bestow,” said a humane essayist of the eighteenth century,^[32] “on a superior being who, without provocation or advantage, should continue from day to day, void of all pity and remorse, to torment mankind for diversion, and at the same time endeavour with the utmost care to preserve their lives and to promulgate their species, in order to increase the number of victims devoted to his malevolence, and be delighted in proportion to the miseries which he occasioned? I say, what name detestable enough could we find for such a being? Yet, if we impartially consider the case, and our intermediate situation, we must acknowledge that, with regard to the inferior animals, just such a being is the sportsman.”

The excuses alleged in favour of English blood-sports in general, and of hunting in particular, are for the most part as irrelevant as they are unreasonable. It is often said that the manliness of our national character would be injuriously affected by the discontinuance of these sports—a

strange argument, when one considers the very unequal, and therefore unmanly, conditions of the strife. But, apart from this consideration, what right can we possess to cultivate these personal qualities at the expense of unspeakable suffering to the lower races? Such actions may be pardonable in a savage, or in a schoolboy in whom the savage nature still largely predominates, but they are wholly unworthy of a civilized and rational man.

As for the nonsense sometimes talked about the beneficial effects of those field-sports which bring men into contact with the sublimities of nature, the dynamiters who used to cross the ocean to blow up an English town might on this principle have justified the object of their journey by the assertion that the sea-voyage brought them in contact with the exalting and ennobling influence of the Atlantic.^[33]

As the case stands between the sportsman and his victims, there cannot be much doubt as to whence the benefits proceed, and from which party the gratitude is due.

“Woe to the ungrateful!” says Michelet. “By this phrase I mean the sporting crowd, who, unmindful of the numerous benefits we owe to the animals, exterminate innocent life. A terrible sentence weighs on the tribes of sportsmen—they can create nothing. They originate no art, no industry.... It is a shocking and hideous thing to see a child partial to sport; to see woman enjoying and admiring murder, and encouraging her child. That delicate and sensitive woman would not give him a knife, but she gives him a gun.”

The sports of hunting and coursing are a brutality which could not be tolerated for a day in a state which possessed anything more than the mere name of justice, freedom, and enlightenment. Sir Thomas More says of his model citizens in “Utopia:”

“Nor can they comprehend the pleasure of seeing dogs run after a hare more than of seeing one dog run after another; for if the seeing them run is that which gives the pleasure, you have the same entertainment to the eye on both these occasions, since that is the same in both cases; but if the pleasure lies in seeing the hare killed and torn by the dogs, this ought rather to stir pity,

that a weak, harmless, and fearful hare should be devoured by strong, fierce, and cruel dogs.”

To be accurate, the zest of sport lies neither in the running nor the killing, as such, but in the excitement caused by the fact that a life (some one else’s life) is at stake, that the pursuer is matched in a fierce game of hazard against the pursued. The opinion has been expressed, by one well qualified to speak with authority on the subject, that “well-laid drags, tracked by experts, would test the mettle both of hounds and riders to hounds; but then a terrified, palpitating, fleeing life would not be struggling ahead, and so the idea is not pleasing to those who find pleasure in blood.”^[34]

The case is even worse when the quarry is to all intents and purposes domesticated, an animal wild by nature, but by force of circumstances and surroundings tame. Such are the park deer, the victims of the sportsmen who persist in carrying on the carted stag hunt, in spite of the abolition of the Royal Buckhounds in 1901. There is urgent need that the laws which relate to the humane treatment of animals should be amended, or more wisely interpreted, on this particular point, so as to afford immediate protection to these domesticated stags, whose torture, under the name and sanction of “sport,” has been long condemned by the public conscience. Bear-baiting and cock-fighting have now been abolished by legal enactment, and it is high time that the equally demoralizing sport of hunting of tame stags should be relegated to the same category.^[35]

The same must be said of some sports which are practised by the English working man—rabbit-coursing, in particular, that half-holiday diversion which is so popular in many villages of the North. An attempt is often made by the apologists of amateur butchery to play off one class against another in the discussion of this question. They protest, on the one hand, against any interference with aristocratic sport, on the plea that working men are no less addicted to such pastimes; and, on the other hand, a cry is raised against the unfairness of restricting the amusements of the poor, while noble lords and ladies are permitted to hunt the carted stag with impunity.

The obvious answer to these quibbling excuses is that *all* such barbarities, whether practised by rich or poor, are alike condemned by any conceivable principle of justice and humaneness; and, further, that it is a doubtful compliment to working men to suggest that they have nothing better to do

in their spare hours than to torture defenceless rabbits. It was long ago remarked by Martin, the author of the famous Act of 1822, that such an argument indicates at bottom a contempt rather than regard for the working-classes; it is as much as to say, “Poor creatures, let them alone—they have few amusements—let them enjoy them.”

Nothing can be more shocking than the treatment commonly accorded to rabbits, rats, and other small animals, on the plea that they are “vermin,” and therefore, it is tacitly assumed, outside the pale of humanity and justice; we have here another instance of the way in which the application of a contemptuous name may aggravate and increase the actual tendency to barbarous ill-usage. How many a demoralizing spectacle, especially where the young are concerned, is witnessed when “fun” is made out of the death and torture of “vermin”! How horrible is the practice, apparently universal throughout all country districts, of setting steel traps along the ditches and hedgerows, in which the victims are frequently left to linger, in an agony of pain and apprehension, for hours, or even days! Yet there are no means of redressing these barbarities, because the laws, such as they are, which prohibit cruelty to animals, are not designed to take any cognizance of “vermin.”

All that has been said of hunting and coursing is applicable also—in a less degree, perhaps, but on exactly the same principle—to the sports of shooting and fishing. Let me quote a striking testimony to the wickedness and injustice of sport, as exhibited in one of its most refined and fashionable forms, the “cult of the pheasant.”^[36]

“For what is it but the deliberate massacre in cold blood every year of thousands and tens of thousands of tame, hand-reared birds who are literally driven into the jaws of death and mown down in a peculiarly brutal manner?... A perfect roar of guns fills the air, louder tap and yell the beaters, above the din can be heard the heart-rending cries of wounded hares and rabbits, some of which can be seen dragging themselves away, with both hind legs broken, or turning round and round in their agony before they die. And the pheasants! They are on every side, some rising, some dropping, some lying dead, but the greater majority fluttering on the ground wounded, some with both legs broken and a wing, some with both wings broken and a leg,

others merely winged, running to hide, others mortally wounded gasping out their last breath of life amidst the fiendish sounds which surround them. And this is called *sport*!... Sport in every form and kind is horrible, from the rich man's hare-coursing to the poor man's rabbit-coursing. All show the 'tiger' that lives in our natures, and which nothing but a higher civilization will eradicate."

It does not in the least matter, so far as the question of animals' rights is concerned, whether you run your victim to death with a pack of yelping hounds, or shoot him with a gun, or drag him from his native waters by a hook; the point at issue is simply whether man is justified in inflicting any form of death or suffering on the lower races for his mere amusement and caprice. There can be little doubt what answer must be given to this question.

CHAPTER VI.

MURDEROUS MILLINERY.

WE have seen what a vast amount of quite preventable suffering is caused through the agency of the slaughterman who kills for a business, and of the sportsman who kills for a pastime, the victims in either case being regarded as mere irrational automata, with no higher destiny than to satisfy the most artificial wants or the most cruel caprices of mankind. A few words must now be said about the fur and feather traffic—the slaughter of mammals and birds for human clothing or human ornamentation—a subject connected on the one hand with that of flesh-eating, and on the other, though to a less degree, with that of sport. What I shall say will of course have no reference to wool, or any other substance which is obtainable without injury to the animal from whom it is taken.

It is evident that in this case, as in the butchering trade, the responsibility for whatever wrongs are done must rest ultimately on the class which demands an unnecessary commodity, rather than on that which is compelled by economic pressure to supply it; it is not the man who kills the bird, but the lady who wears the feathers in her hat, who is the true offender. But here it will be asked, *is the use of furs and feathers unnecessary?* Now of course if we consider solely the present needs and tastes of society, in regard to these matters, it must be admitted that a sudden, unexpected withdrawal of the numberless animal products on which our “civilization” depends would be a very serious embarrassment; the world, as alarmists point out to us, might have to go to bed without candles, and wake up to find itself without boots. It must be remembered, however, that such changes do not come about with suddenness, but, on the contrary, with the extremest slowness imaginable; and a little thought will suggest, what experience has already in many cases confirmed, that there is really no indispensable animal substance for which a substitute cannot be provided, when once there is sufficient demand, from the vegetable or mineral kingdom.

Take the case of leather, for instance, a material which is in almost universal use, and may, under present circumstances, be fairly described as a necessary. What should we do without leather? was, in fact, a question very frequently asked of vegetarians during the early and callow years of the food-reform movement, until it was found that vegetable leather could be successfully employed in boot-making, and that the inconsistency of which vegetarians at present stand convicted is only a temporary and incidental one. Now of course so long as oxen are slaughtered for food, their skins will be utilized in this way; but it is not difficult to foresee that the gradual discontinuance of the habit of flesh-eating will lead to a similar gradual discontinuance of the use of hides, and that human ingenuity will not be at a loss in the provision of a substitute. So that it does not follow that a commodity which, in the immediate sense, is necessary now, would be absolutely or permanently necessary, under different conditions, in the future.

My sole reason for dwelling on this typical point is that I wish to guard myself, by anticipation, against a very plausible argument, by which discredit is often cast on the whole theory of animals' rights. What can be the object, it is said, of entering on the sentimental path of an impossible humanitarianism, which only leads into insurmountable difficulties and dilemmas, inasmuch as the use of these various animal substances is so interwoven with the whole system of society that it can never be discontinued until society itself comes to an end? I assert that the case is by no means so desperate—that it is easy to make a right beginning now, and to foresee the lines along which future progress will be effected. Much that is impossible in our own time may be realized, by those who come after us, as the natural and inevitable outcome of reforms which it now lies with us to inaugurate.

This said, it may be freely admitted that, at the outset, humanitarians will do well to draw a practical distinction between such animal products as are converted to some genuine personal use, and those which are supplied for no better object than to gratify the idle whims of luxury or fashion. The *when* and the *where* are considerations of the greatest import in these questions. There is a certain fitness in the hunter—himself the product of a rough, wild era in human development—assuming the skins of the wild creatures he has conquered; but it does not follow because an Eskimo, for

example, may appropriately wear fur, or a Red Indian feathers, that this apparel will be equally becoming to the inhabitants of London or New York; on the contrary, an act which is perfectly natural in the one case is often a sign of crass vulgarity in the other. Hercules, clothed triumphant in the spoils of the Nemean lion, is a subject for painter and poet; but what if he had purchased the skin, ready dressed, from a contemporary manufacturer?

What we must unhesitatingly condemn is the blind and reckless barbarism which has ransacked, and is ransacking, whole provinces and continents, without a glimmer of suspicion that the birds and quadrupeds which it is rapidly exterminating have any other part or purpose in nature than to be sacrificed to human vanity, that idle gentlemen and ladies may bedeck themselves, like certain characters in the fable, in borrowed skins and feathers. What care *they* for all the beauty and tenderness and intelligence of the varied forms of animal life? and what is it to them whether these be helped forward by man in the universal progress and evolution of all living things, or whether whole species be transformed and degraded by the way—boiled down, like the beaver, into a hat, or, like the seal, into a lady's jacket?

Whatever it may be in other respects, the fur trade, in so far as it is a supply of ornamental clothing for those who are under no necessity of wearing fur at all, is a barbarous and stupid business. It makes patchwork, one may say, not only of the hides of its victims, but of the conscience and intellect of its patrons. A fur garment or trimming, we are told, appearing to the eye as if it were one uniform piece, is generally made up of many curiously shaped fragments. It is significant that a society which is enamoured of so many shams and fictions, and which detests nothing so strongly as the need of looking facts in the face, should pre-eminently esteem those articles of apparel which are constructed on the most deceptive and illusory principle. The story of the Ass in the Lion's skin is capable, it seems, of a new and wider application.

Cruel as is all hunting of animals for their fur, there is a peculiar callousness in the seal "fishery," not only because the seal, far from being a fish, is one of the most sensitive of warm-blooded animals, but because of the atrocious methods by which the practice of "sealing" has too often been pursued. In

all the history of man's dealings with the lower races, there is no bloodier record than that of his treatment of the trustful and unresisting seal.

But if the fur trade gives cause for serious reflection, what are we to say of the still more abominable trade in feathers? Murderous, indeed, is the millinery which finds its most fashionable ornament in the dead bodies of birds—birds, the loveliest and most blithesome beings in Nature! It has been said that “to enumerate all the feathers used for ornamental purposes would be practically to give a complete list of all known and obtainable birds.” The figures and details published by those humane writers who have raised an unavailing protest against this latest and worst crime of Fashion are really appalling in their stern and naked record of unremitting cruelty.

“One dealer in London is said to have received as a single consignment 32,000 dead humming-birds, 80,000 aquatic birds, and 800,000 pairs of wings. A Parisian dealer had a contract for 40,000 birds, and an army of murderers were turned out to supply the order. No less than 40,000 terns have been sent from Long Island in one season for millinery purposes. At one auction alone in London there were sold 404,389 West Indian and Brazilian bird-skins, and 356,389 East Indian, besides thousands of pheasants and birds-of-paradise.”

The meaning of such statistics is simply that the women of Europe and America have given an order for the ruthless extermination of birds.

It is not seriously contended in any quarter that this wholesale destruction, effected often in the most revolting and heartless manner, is capable of excuse or justification; yet the efforts of those who address themselves to the better feelings of the offenders appear to meet with little or no success. The cause of this failure must undoubtedly be sought in the general lack of any clear conviction that animals have rights; and the evil will never be thoroughly remedied until not only this particular abuse, but all such abuses, and the prime source from which such abuses originate, have been subjected to an impartial criticism.^[37]

In saying this I do not of course mean to imply that special efforts should not be directed against special cruelties. I have already remarked that the main responsibility for the daily murders which fashionable millinery is instigating must lie at the door of those who demand, rather than those who

supply, these hideous and funereal ornaments. Unfortunately the process, like that of slaughtering cattle, is throughout delegated to other hands than those of the ultimate purchaser, so that it is exceedingly difficult to bring home a due sense of blood-guiltiness to the right person.

The confirmed sportsman, or amateur butcher, at least sees with his own eyes the circumstances attendant on his “sport”; and the fact that he feels no compunction in pursuing it is due, in most cases, to an obtuseness or confusion of the moral faculties. But many of those who wear seal-skin mantles, or feather-bedaubed bonnets are naturally humane enough; they are misled by pure ignorance or thoughtlessness, and would at once abandon such practices if they could be made aware of the methods employed in the wholesale massacre of seals or humming-birds. Still, it remains true that all these questions ultimately hang together, and that no complete solution will be found for any one of them until the whole problem of our moral relation towards the lower animals is studied with far greater comprehensiveness.

For this reason it is perhaps unscientific to assert that any particular form of cruelty to animals is *worse* than another form; the truth is, that each of these hydra-heads, the offspring of one parent stem, has its own proper characteristic, and is different, not worse or better than the rest. To flesh-eating belongs the proud distinction of causing a greater bulk of animal suffering than any other habit whatsoever; to sport, the meed of unique and unparalleled brutality; while the patrons of murderous millinery afford the most marvellous instance of the capacity the human mind possesses for ignoring its personal responsibilities. To re-apply Keats’s words:

“For them the Ceylon diver held his breath,
And went all naked to the hungry shark;
For them his ears gush’d blood; for them in death
The seal on the cold ice with piteous bark
Lay full of darts; for them alone did seethe
A thousand men in troubles wide and dark;
Half ignorant, they turn’d an easy wheel,
That set sharp racks at work, to pinch and peel.”

CHAPTER VII.

EXPERIMENTAL TORTURE.

GREAT is the change when we turn from the easy, thoughtless indifferentism of the sportsman or the milliner to the more determined and deliberately chosen attitude of the scientist—so great, indeed, that by many people, even among professed champions of animals' rights, it is held impossible to trace such dissimilar lines of action to one and the same source. Yet it can be shown, I think, that in this instance, as in those already examined, the prime cause of man's injustice to the lower animals is the belief that they are mere automata, devoid alike of spirit, character, and individuality; only, while the ignorant sportsman expresses this contempt through the medium of the battue, and the milliner through that of the bonnet, the more seriously-minded physiologist works his work in the "experimental torture" of the laboratory. The difference lies in the temperament of the men, and in the tone of their profession; but in their denial of the most elementary rights of the lower races, they are all inspired and instigated by one common prejudice.

The analytical method employed by modern science tends ultimately, in the hands of its most enlightened exponents, to a recognition of the close relationship between mankind and the animals; but incidentally it has exercised a most sinister effect on the study of the *jus animalium* among the mass of average men. For consider the dealings of the so-called naturalist with the animals whose nature he makes it his business to observe! In ninety-nine cases out of a hundred, he is wholly unappreciative of the distinctive quality, the individuality, of the subject of his investigations, and becomes nothing more than a contented accumulator of facts, an industrious dissector of carcasses.

"I think the most important requisite in describing an animal," says Thoreau, "is to be sure that you give its character and spirit, for in that you have, without error, the sum and effect of all its parts known and unknown. Surely the most important part of an animal is its *anima*, its vital spirit, on which is based its

character and all the particulars by which it most concerns us. Yet most scientific books which treat of animals leave this out altogether, and what they describe are, as it were, phenomena of dead matter.”

The whole system of our “natural history” as practised at the present time, is based on a deplorably partial and misleading method. Does a rare bird alight on our shores? It is at once slaughtered by some enterprising collector, and proudly handed over to the nearest taxidermist, that it may be “preserved,” among a number of other stuffed corpses, in the local Museum. It is a dismal business at best, this science of the fowling-piece and the dissecting-knife, but it is in keeping with the utilitarian tendency of a certain school of thought, and only a few of its professors rise out of it, and above it, to a maturer and more far-sighted understanding.

“The child,” says Michelet, “disports himself, shatters, and destroys; he finds his happiness in *undoing*. And science, in its childhood, does the same. It cannot study unless it kills. The sole use which it makes of a living mind is, in the first place, to dissect it. None carry into scientific pursuits that tender reverence for life which Nature rewards by unveiling to us her mysteries.”

Under these circumstances, it is scarcely to be wondered at that modern scientists, their minds athirst for further and further opportunities of satisfying this analytical curiosity, should desire to have recourse to the experimental torture which is euphemistically described as “vivisection.” They are caught and impelled by the overmastering passion of knowledge; and, as a handy subject for the gratification of this passion, they see before them the helpless race of animals, in part wild, in part domesticated, but alike regarded by the generality of mankind as incapable of possessing any “rights.” They are practically accustomed (despite their ostensible disavowal of the Cartesian theory) to treat these animals as automata—things made to be killed and dissected and catalogued for the advancement of knowledge; they are, moreover, in their professional capacity, the lineal descendants of a class of men who, however kindly and considerate in other respects, have never scrupled to subordinate the strongest promptings of humaneness to the least of the supposed interests of science.^[38] Given these conditions, it seems as inevitable that the physiologist should vivisect as

that the country gentleman should shoot. Experimental torture is as appropriately the study of the half-enlightened man as sport is the amusement of the half-witted.

But the fact that vivisection is not, as some of its opponents would appear to regard it, a portentous, unaccountable phenomenon, but rather the logical outcome of a certain ill-balanced habit of mind, does not in any way detract from its intellectual and moral loathsomeness. It is idle to spend a single moment in advocating the rights of the lower animals, if such rights do not include a total and unqualified exemption from the awful tortures of vivisection—from the doom of being slowly and mercilessly dismembered, or flayed, or baked alive, or infected with some deadly virus, or subjected to any of the numerous modes of torture inflicted by the Scientific Inquisition.

[39] Let us heartily endorse the words of Miss Cobbe on this crucial subject:

“The *minimum* of all possible rights plainly is—to be spared the worst of all possible wrongs; and if a horse or dog have no claim to be spared from being maddened and mangled after the fashion of Pasteur and Chauveau, then it is impossible it can have any right at all, or that any offence against it, by gentle or simple, can deserve punishment.”

The assertion, commonly made by the apologists of the Scientific Inquisition, that vivisection is justified by its utility—that it is, in fact, indispensable to the advance of knowledge and civilization—is founded on a mere half-view of the position; the scientist, as I have already remarked, is a half-enlightened man. Let us assume (a large assumption, certainly, controverted as it is by some most weighty medical testimony) that the progress of surgical science is assisted by the experiments of the vivisector. What then? Before rushing to the conclusion that vivisection is justifiable on that account, a wise man will take into full consideration the other, the moral side of the question—the hideous injustice of torturing a sentient animal, and the terrible wrong thereby done to the humane sense of the community. [40]

The wise scientist and the wise humanist are identical. A true science cannot possibly ignore the incontrovertible fact that the practice of vivisection is revolting to the human conscience, even among the ordinary members of a not over-sensitive society. The so-called “science” which overlooks this

vital fact, and confines its view to the material aspects of the problem, is not science at all, but a one-sided assertion of the views which find favour with a particular class of specialists.

Nothing is necessary which is abhorrent, revolting, intolerable, to the general instincts of humanity. Better a thousand times that science should forego or postpone the questionable advantage of certain problematical discoveries, than that the moral conscience of the community should be unmistakably outraged by the confusion of right and wrong. The short cut is not always the right path; and to perpetrate a cruel injustice to the lower animals, and then attempt to excuse it on the ground that it will benefit posterity, is an argument which is as irrelevant as it is immoral. Ingenious it may be (in the way of hoodwinking the unwary) but it is certainly in no true sense scientific.

If there be one bright spot, one refreshing oasis, in the discussion of this dreary subject, it is the humorous recurrence of the old threadbare fallacy of “better for the animals themselves.” Yes, even here, in the laboratory of the vivisector, amidst the baking and sawing and dissection, we are sometimes met by that familiar friend—the proud plea of a single-hearted regard for the interests of the suffering animals! Who knows but what some beneficent experimentalist, if only he be permitted to cut up a sufficient number of victims, may discover some potent remedy for all the lamented ills of the animal as well as of the human creation? Can we doubt that the victims themselves, if once they could realize the noble object of their martyrdom, would vie with each other in rushing eagerly on the knife? The only marvel is that, where the cause is so meritorious, no *human* volunteer has as yet come forward to die under the hands of the vivisector!^[41]

It is fully admitted that experiments on men would be far more valuable and conclusive than experiments on animals; yet scientists usually disavow any wish to revive these practices, and indignantly deny the rumours, occasionally circulated, that the poorer patients in hospitals are the subjects of such anatomical curiosity. Now here, it will be observed, in the case of men, the *moral* aspect of vivisection is admitted by the scientist as a matter of course, yet in the case of animals it is allowed no weight whatever! How can this strange inconsistency be justified, unless on the assumption that men have rights, but animals have no rights—in other words, that animals

are mere *things*, possessed of no claim on the justice and forbearance of the community?

One of the most notable and ominous features in the apologies offered for vivisection is the assertion, so commonly made by scientific writers, that it is “no worse” than certain kindred practices. When the upholders of any accused institution begin to plead that it is “no worse” than other institutions, we may feel quite assured that the case is a very bad one indeed—it is the drowning man catching at the last straw and shred of argument. Thus the advocates of experimental torture are reduced to the expedient of laying stress on the cruelties of the butcher and the herdsman, and inquiring why, if pole-axing and castration are permissible, vivisection may not also be permitted.^[42] Sport, also, is a practice which has greatly shocked the susceptibilities of the humane vivisector. A writer in the “Fortnightly Review” has defined sport as “the love of the clever destruction of living things,” and has calculated that three millions of animals are yearly mangled by English sportsmen, in addition to those killed outright.^[43]

Now if the attack on vivisection emanated primarily or wholly from the apologists of the sportsman and slaughterer, this *tu quoque* of the scientist’s must be allowed to be a smart, though rather flippant, retort; but when *all* cruelty is arraigned as inhuman and unjustifiable, an evasive answer of this kind ceases to have any pertinence. Let us admit, however, that, in contrast with the childish brutality of the sportsman, the undoubted seriousness and conscientiousness of the vivisector (for I do not question that he acts from conscientious motives) may be counted to his advantage. But then we have to remember, on the other hand, that the conscientious man, when he goes wrong, is far more dangerous to society than the knave or the fool; indeed, the special horror of vivisection consists precisely in this fact, that it is not due to mere thoughtlessness and ignorance, but represents a deliberate, avowed, conscientious invasion of the very principle of animals’ rights.

I have already said that it is idle to speculate which is the worst form of cruelty to animals, for certainly in this subject, if anywhere, we must

“... reject the lore
Of nicely calculated less or more.”

Vivisection, if there be any truth at all in the principle for which I am contending, is not the root, but the flower and consummation of barbarity

and injustice—the *ne plus ultra* of iniquity in man's dealings with the lower races. The root of the evil lies, as I have throughout asserted, in that detestable assumption (detestable equally whether it be based on pseudo-religious or pseudo-scientific grounds) that there is a gulf, an impassable barrier, between man and the animals, and that the moral instincts of compassion, justice, and love, are to be as sedulously repressed and thwarted in the one direction as they are to be fostered and extended in the other.

For this very reason our crusade against the Scientific Inquisition, to be thorough and successful, must be founded on the rock of consistent opposition to cruelty in every form and phase; it is useless to denounce vivisection as the source of all inhumanities, and, while demanding its immediate suppression, to suppose that other minor questions may be indefinitely postponed. It is true that the actual emancipation of the lower races, as of the human, can only proceed step by step, and that it is both natural and politic to strike first at what is most repulsive to the public conscience. I am not denying the wisdom of such a concentration of effort on any particular point, but warning my readers against the too common tendency to forget the general principle that underlies each individual protest.

The spirit in which we approach these matters should be a liberal and far-seeing one. Those who work for the abolition of vivisection, or any other particular wrong, should do so with the avowed purpose of capturing one stronghold of the enemy, not because they believe that the war will then be over, but because they will be able to use the position thus gained as an advantageous starting-point for still further progression.

CHAPTER VIII.

LINES OF REFORM.

HAVING now applied the principle with which we started to the several cases where it appears to be most flagrantly overlooked, we are in a better position to estimate the difficulties and the possibilities of its future acceptance. Our investigation of animals' rights has necessarily been, in large measure, an enumeration of animals' wrongs, a story of cruelty and injustice which might have been unfolded in far greater and more impressive detail, had there been any reason for here repeating what has been elsewhere established by other writers beyond doubt or dispute.

But my main purpose was to deal with a general principle rather than with particular instances; and enough has already been said to show that, while man has much cause to be grateful to the lower animals for the innumerable services rendered by them, he can hardly pride himself on the record of the counter-benefits which they have received at his hands.

“If we consider,” says Primatt, “the excruciating injuries offered on our part to the brutes, and the patience on their part; how frequent *our* provocation, and how seldom *their* resentment (and in some cases *our* weakness and *their* strength, *our* slowness and *their* swiftness); one would be almost tempted to suppose that the brutes had combined in one general scheme of benevolence, to teach mankind lessons of mercy and meekness by their own forbearance and longsuffering.”

It is unwise, no doubt, to dwell too exclusively on the wrongs of which animals are the victims; it is still more unwise to ignore them as they are to-day ignored by the large majority of mankind. It is full time that this question were examined in the light of some rational and guiding principle, and that we ceased to drift helplessly between the extremes of total indifference on the one hand, and spasmodic, partially-applied compassion on the other. We have had enough, and too much, of trifling with this or that isolated aspect of the subject, and of playing off the exposure of somebody

else's insensibility by way of a balance for our own, as if a *tu quoque* were a sufficient justification of a man's moral delinquencies.

The terrible sufferings that are quite needlessly inflicted on the lower animals under the plea of domestic usage, food-demands, sport, fashion, and science, are patent to all who have the seeing eye and the feeling heart to apprehend them; those sufferings will not be lessened, nor will man's responsibility be diminished by any such irrelevant assertions as that vivisection is less cruel than sport, or sport less cruel than butchering,—nor yet by the contrary contention that vivisection, or sport, or flesh-eating, as the case may be, is the prime origin of all human inhumanity. We want a comprehensive principle which will cover all these varying instances, and determine the true lines of reform.

Such a principle, as I have throughout insisted, can only be found in the recognition of the right of animals, as of men, to be exempt from any unnecessary suffering or serfdom, the right to live a natural life of “restricted freedom,” subject to the real, not supposed or pretended, requirements of the general community. It may be said, and with truth, that the perilous vagueness of the word “necessary” must leave a convenient loop-hole of escape to anyone who wishes to justify his own treatment of animals, however unjustifiable that treatment may appear; the vivisector will assert that his practice is necessary in the interests of science, the flesh-eater that he cannot maintain his health without animal food, and so on through the whole category of systematic oppression.

The difficulty is an inevitable one. No form of words can be devised for the expression of rights, human or animal, which is not liable to some sort of evasion; and all that can be done is to fix the responsibility of deciding between what is necessary and unnecessary, between factitious personal wants and genuine social demands, on those in whom is vested the power of exacting the service or sacrifice required. The appeal being thus made, and the issue thus stated, it may be confidently trusted that the personal conscience of individuals and the public conscience of the nation, acting and reacting in turn on each other, will slowly and surely work out the only possible solution of this difficult and many-sided problem.

For that the difficulties involved in this animal question are many and serious, no one, I imagine, would dispute, and certainly no attempt has been

made in this essay to minimize or deny them. It may suit the purpose of those who would retard all humanitarian progress to represent its advocates as mere dreamers and sentimentalists—men and women who befool themselves by shutting their eyes to the fierce struggle that is everywhere being waged in the world of nature, while they point with virtuous indignation to the iniquities perpetrated by man. But it is possible to be quite free from any sentimental illusions, and yet to hold a very firm belief in the principle of animals' rights. We do not deny, or attempt to explain away, the existence of evil in nature, or the fact that the life of the lower races, as of mankind, is based to a large degree on rapine and violence; nor can we pretend to say whether this evil will ever be wholly amended. It is therefore confessedly impossible, at the present time, to formulate an entirely and logically consistent philosophy of rights; but that would be a poor argument against grappling with the subject at all.

Nor are the hard unmistakable facts of the situation, when viewed in their entirety, by any means calculated to inspire with confidence the opponents of humane reform. For, if it be true that internecine competition is a great factor in the economy of nature, it is no less true, as has been already pointed out, that co-operation is also a great factor therein. Furthermore, though there are many difficulties besetting the onward path of humanitarianism, an even greater difficulty has to be faced by those who refuse to proceed along that path, viz., the fact—a stronger fact than any that can be produced on the other side—that the instinct of compassion and justice to the lower animals has already been so largely developed in the human conscience as to obtain legislative recognition. If the theory of animals' rights is a mere idealistic phantasy, it follows that we have long ago committed ourselves to a track which can lead us nowhither. Is it then proposed that we should retrace our steps, with a view to regaining the antique position of savage and consistent callousness; or are we to remain perpetually in our present meaningless attitude, admitting the moral value of a partially awakened sensibility, yet opposing an eternal *non possumus* to any further improvement? Neither of these alternatives is for a moment conceivable; it is perfectly certain that there will still be a forward movement, and along the same lines as in the past.

Nor need we be at all disconcerted by the derisive inquiries of our antagonists as to the final outcome of such theories. "There is some reason

to hope,” said the author of the ironical “Vindication of the Rights of Brutes,” “that this essay will soon be followed by treatises on the rights of vegetables and minerals, and that thus the doctrine of perfect equality will become universal.” To which suggestion we need only answer, “Perhaps.” It is for each age to initiate its own ethical reforms, according to the light and sensibility of its own instincts; further and more abstruse questions, at present insoluble, may safely be left to the more mature judgment of posterity. The human conscience furnishes the safest and simplest indicator in these matters. We know that certain acts of injustice affect us as they did not affect our forefathers—it is our duty to set these right. It is not our duty to agitate problems, which, at the present date, excite no unmistakable moral feeling.

The humane instinct will assuredly continue to develop. And it should be observed that to advocate the rights of animals is far more than to plead for compassion or justice towards the victims of ill-usage; it is not only, and not primarily, for the sake of the victims that we plead, but for the sake of mankind itself. Our true civilization, our race-progress, our *humanity* (in the best sense of the term) are concerned in this development; it is ourselves, our own vital instincts, that we wrong, when we trample on the rights of the fellow-beings, human or non-human, over whom we chance to hold jurisdiction.

This most important point is constantly overlooked by the opponents of humanitarian reform. They labour, unsuccessfully enough, to minimize the complaints of animals’ wrongs, on the plea that these wrongs, though great, are not so great as they are represented to be, and that in any case it is not possible, or not urgently desirable, for man to alleviate them. As if *human* interests also were not intimately bound up in every such compassionate endeavour!

And this brings us back to the moral of the whole matter. The idea of Humanity is no longer confined to man; it is beginning to extend itself to the lower animals, as in the past it has been gradually extended to savages and slaves. “Behold the animals. There is not one but the human soul lurks within it, fulfilling its destiny as surely as within you.” So writes the author of “Towards Democracy”; and what has long been felt by the poet is now being scientifically corroborated by the anthropologist and philosopher. “The standpoint of modern thought,” says Büchner,^[44] “no longer

recognizes in animals a difference of kind, but only a difference of degree, and sees the principle of intelligence developing through an endless and unbroken series.”

It is noteworthy that, on this point, evolutionary science finds itself in agreement with oriental tradition.

“The doctrine of metempsychosis,” says Strauss,^[45] “knits men and beasts together here [in the East], and unites the whole of Nature in one sacred and mysterious bond. The breach between the two was opened in the first place by Judaism, with its hatred of the Gods of Nature, next by the dualism of Christianity. It is remarkable that at present a deeper sympathy with the animal world should have arisen among the more civilized nations, which manifests itself here and there in societies for the prevention of cruelty to animals. It is thus apparent that what on the one hand is the product of modern science—the giving up of the spiritualistic isolation of man from Nature—reveals itself simultaneously through the channel of popular sentiment.”

The true scientist and humanist is he who will reconcile brain to heart, and show us how, without any sacrifice of what we have gained in knowledge, we may resume what we have temporarily lost during the process of acquiring that knowledge—the sureness of intuitive faculty which is originally implanted in men and animals alike. Only by this return to the common fount of feeling will it be possible for man to place himself in right relationship towards the lower animals, and to break down the fatal barrier of antipathy that he has himself erected.^[46] If we contrast the mental and moral attitude of the generality of mankind towards the lower races with that of such men as St. Francis or Thoreau, we see what far-reaching possibilities still lie before us on this line of development.

A not altogether unjustifiable complaint is made against “lovers of animals,” that they are often indifferent to the struggle for human rights, while they concern themselves so eagerly over the interests of the lower races. Equally true is the converse statement, that many earnest reformers and philanthropists, men who have a genuine passion for human liberty and progress, are coldly sceptical or even bitterly hostile on the subject of the rights of animals. This organic limitation of sympathies must be recognized

and regretted, but it is worse than useless for the one class of reformers to indulge in blame or recrimination against the other. It is certain that they are both working towards the same ultimate end; and if they cannot actually co-operate, they may at least refrain from unnecessarily thwarting and opposing each other.

The principles of justice, if they are to make solid and permanent headway, must be applied with thoroughness and consistency. If there are rights of animals, there must *à fortiori* be rights of men; and, as I have shown, it is impossible to maintain that an admission of human rights does not involve an admission of animals' rights also. Now it may not always fall to the lot of the same persons to advocate both kinds of rights, but these rights are, nevertheless, being simultaneously and concurrently advocated; and those who are in a position to take a clear and wide survey of the whole humanitarian movement are aware that its final success is dependent on this broad onward tendency.

The advent of democracy, imperfect though any democracy must be which does not embrace all sentient beings within its scope, will be of enormous assistance to the cause of animals' rights, for under the present unequal and inequitable social system there is no possibility of those claims receiving their due share of attention. In the rush and hurry of a competitive society, where commercial profit is avowed to be the main object of work, and where the well-being of men and women is ruthlessly sacrificed to that object, what likelihood is there that the lower animals will not be used with a sole regard to the same predominant purpose? Humane individuals may here and there protest, and the growing conscience of the public may express itself in legislation against the worst forms of palpable ill-usage, but the bulk of the people simply cannot, and will not, treat animals as they ought to be treated. Do the wealthy classes show any such consideration? Let "amateur butchery" and "murderous millinery" be the answer. Can it be wondered, then, that the "lower classes," whose own rights are existent far more in theory than in fact, should exhibit a feeling of stolid indifference to the rights of the still lower animals? It is to democracy, and the democratic sense of kinship and brotherhood, extending first to mankind, and then to the lower races, that we must look for future progress. The emancipation of men will bring with it another and still wider emancipation—of animals. ^[47]

In conclusion, we are brought face to face with this practical problem—by what means can we best provide for the attainment of the end we have in view? What are the surest remedies for the present wrongs, and the surest pledges for the future rights, of the victims of human tyranny? There are two pre-eminently important methods, which are sometimes regarded as contradictory in principle, but which, as I hope to show, are not only quite compatible, but even mutually serviceable and to some degree interdependent. We have no choice but to work by one or the other of these methods, and, if we are wise, we shall endeavour to work by both simultaneously, using the first as our chief instrument of reform, the second as an auxiliary.

I. Education, in the largest sense of the term, has always been, and must always remain, the indispensable condition of humanitarian progress. Very excellent are the words of John Bright on the subject:

“Humanity to animals is a great point. If I were a teacher in a school, I would make it a very important part of my business to impress every boy and girl with the duty of his or her being kind to all animals. It is impossible to say how much suffering there is in the world from the barbarity or unkindness which people show to what we call the inferior creatures.”

It may be doubted, however, whether the young will ever be specially impressed with the lesson of humanity as long as the general tone of their elders and instructors is one of cynical indifference, if not of absolute hostility, to the recognition of animals' rights.^[48] It is society as a whole, and not one class in particular, that needs enlightenment and remonstrance; in fact, the very conception and scope of what is known as a “liberal education” must be revolutionized and extended. For if we find fault with the narrow and unscientific spirit of what is known as “science,” we must in fairness admit that our academic “humanities,” the *literæ humaniores* of colleges and schools, together with much of our modern culture and refinement, are scarcely less deficient in the spirit of sympathy and brotherhood. This divorce of “humanism” from humaneness is one of the subtlest dangers by which society is beset; for, if we grant that love needs to be tempered and directed by wisdom, still more needful is it that wisdom should be informed and vitalized by love.

It is therefore not only our children who need to be educated in the proper treatment of animals, but our scientists, our religionists, our moralists, and our men of letters. For, in spite of the great progress of humanitarian ideas during the past century, it must be confessed that the popular exponents of western thought are still for the most part quite unable to appreciate the profound truth of those words of Rousseau, which should form the basis of an enlightened system of instruction:

“Hommes, soyez humains! C’est votre premier devoir. Quelle sagesse y a-t-il pour vous, hors de l’humanité?”

But how is this vast educational change to be inaugurated? Like all far-reaching reforms which are promoted by a few believers in the face of the public indifference, it can only be carried through by the energy and resolution of its supporters. The efforts which the various humane societies are now making in special directions, each concentrating its attack on a particular abuse, must be supplemented and strengthened by a crusade—an intellectual, literary, and social crusade—against the central cause of oppression, viz.: the disregard of the natural kinship between man and the animals, and the consequent denial of their rights. We must insist on having the whole question fully considered and candidly discussed, and must no longer permit its most important issues to be shirked because it does not suit the convenience or the prejudices of comfortable folk to give attention to them.

Above all, the sense of ridicule that at present attaches to the supposed “sentimentalism” of an advocacy of animals’ rights must be faced and swept away. The fear of this absurd charge deprives the cause of humanity of many workers who would otherwise lend their aid, and accounts in part for the unduly diffident and apologetic tone which is too often adopted by humanitarians. We must meet this ridicule, and retort it without hesitation on those to whom it properly pertains. The laugh must be turned against the true “cranks” and “crotchet-mongers”—the noodles who can give no wiser reason for the infliction of suffering on animals than that it is “better for the animals themselves”—the flesh-eaters who labour under the pious belief that animals were “sent” to us as food—the silly women who imagine that the corpse of a bird is a becoming article of head-gear—the half-witted sportsmen who vow that the vigour of the English race is dependent on the practice of fox-hunting—and the half-enlightened scientists who are

unaware that vivisection has moral and spiritual, no less than physical, consequences. That many of our arguments are mere superficial sword-play, and do not touch the profound emotional sympathies on which the cause of humanity rests, is a fact which does not lessen their controversial significance. For this is a case where those who take the sword shall perish by the sword; and the clever men-of-the-world who twit consistent humanitarians with sentimentality may perhaps discover that they themselves—fixed as they are in an ambiguous and utterly untenable position—are the sickliest sentimentalists of all.

II. Legislation, where the protection of harmless animals is concerned, is the fit supplement and sequel to education, and the objections urged against it are for the most part unreasonable. It must inevitably fail in its purpose, say some; for how can the mere passing of a penal statute prevent the innumerable unwitnessed acts of cruelty and oppression which make up the great total of animal suffering? But the purpose of legislation is not merely thus preventive. Legislation is the record, the register, of the moral sense of the community; it follows, not precedes, the development of that moral sense, but nevertheless in its turn reacts on it, strengthens it, and secures it against the danger of retrocession. It is well that society should proclaim, formally and decisively, its abhorrence of certain practices; and I do not think it can be doubted, by those who have studied the history of the movement, that the general treatment of domestic animals in this country, bad as it still is, would be infinitely worse at this day but for the legislation that dates from the passing of “Martin’s Act” in 1822.

The further argument so commonly advanced, that “force is no remedy,” and that it is better to trust to the good feeling of mankind than to impose a legal restriction, is an amiable criticism which might doubtless be applied with great effect to a large majority of our existing penal enactments, but it is not very applicable to the case under discussion. For if force is ever allowable, surely it is so when it is applied for a strictly *defensive* purpose, such as to safeguard the weak and helpless from violence. The protection of animals by statute marks but another step onward in that course of humanitarian legislation which, among numerous triumphs, has abolished slavery and passed the Factory Acts—always in the teeth of this same time-honoured objection that “force is no remedy.” Equally fatuous is the assertion that the administrators of the law cannot be trusted to adjudicate

between master and “beast.” It was long ago stated by Lord Erskine that “to distinguish the severest discipline, for enforcing activity and commanding obedience in such dependents, from brutal ferocity and cruelty, never yet puzzled a judge or jury—never, at least, in my long experience.”

Such arguments against the legal protection of animals were admirably refuted by John Stuart Mill:

“The reason for legal intervention in favour of children apply not less strongly to the case of those unfortunate slaves and victims of the most brutal part of mankind, the lower animals. It is by the grossest misunderstanding of the principles of Liberty that the infliction of exemplary punishment on ruffianism practised towards these defenceless beings has been treated as a meddling by Government with things beyond its province—an interference with domestic life. The domestic life of domestic tyrants is one of the things which it is most imperative on the Law to interfere with. And it is to be regretted that metaphysical scruples respecting the nature and source of the authority of governments should induce many warm supporters of laws against cruelty to the lower animals to seek for justification of such laws in the incidental consequences of the indulgence of ferocious habits to the interest of human beings, rather than in the intrinsic merits of the thing itself. What it would be the duty of a human being, possessed of the requisite physical strength, to prevent by force, if attempted in his presence, it cannot be less incumbent on society generally to repress. The existing laws of England are chiefly defective in the trifling—often almost nominal—maximum to which the penalty, even in the worst cases, is limited.”^[49]

Only with the gradual progress of an enlightened sense of equality shall we remedy these wrongs; and the object of our crusade should be not so much to convert opponents (who, by the very disabilities and limitations of their faculties, can never be really converted,) as to set the confused problem in a clear light, and at least discriminate unmistakably between our enemies and our allies. In all social controversies the issues are greatly obscured by the babel of names and phrases and cross arguments that are bandied to and fro; so that many persons, who by natural sympathy and inclination are the

friends of reform, are found to be ranked among its foes; while not a few of its foes, in similar unconsciousness, have strayed into the opposite camp. To state the issues distinctly, and so attract and consolidate a genuine body of support, is, perhaps, at the present time, the best service that humanitarians can render to the movement they wish to promote.

In conclusion, I would state emphatically that this essay is not an appeal *ad misericordiam* to those who themselves practise, or who condone in others, the deeds against which a protest is here raised. It is not a plea for “mercy” (save the mark!) to the “brute-beasts” whose sole criminality consists in not belonging to the noble family of *homo sapiens*. It is addressed rather to those who see and feel that, as has been well said, “the great advancement of the world, throughout all ages, is to be measured by the increase of humanity and the decrease of cruelty”—that man, to be truly man, must cease to abnegate his common fellowship with all living nature—and that the coming realization of human rights will inevitably bring after it the tardier but not less certain realization of the rights of the lower races.

APPENDIX

I

THE TERM “RIGHTS”^[50]

It was argued by Mr. D. G. Ritchie, in his book on “Natural Rights,” that though “we may be said to have duties of *kindness towards* the animals,” it is “incorrect to represent these as strictly *duties towards* the animals themselves, as if they had rights against us.” (The italics are Mr. Ritchie’s.) I take this to mean that, in man’s “duty of kindness,” it is the “kindness” only that has reference to animals, the “duty” being altogether the private affair of the man. The kindness is, so to speak, the water, and the duty is the tap; and the convenience of this arrangement is that the man can shut off the kindness whenever it suits him to do so; as, for example, it suited Mr. Ritchie in regard to the question of vivisection.

It is strange that ethical authorities should thus hold, as Catholic theologians do, that we owe no direct duties to animals, and that animals not being “persons” have, strictly speaking, no rights. Indeed, so entertaining did the very idea of the “personality” of animals appear to Mr. Ritchie that he waxed humorous in his desire to know whether a sponge is a “person” or “several persons,” and whether the parasites on a dog are to be respected as “persons,” and so forth.

On the other side, the humanitarian contention is quite clear—that there is no difference *in kind* between man and the other animals, nor any warrant in science or ethics for drawing between them, as between “persons” and “things,” an absolute line of demarcation. Compelled to admit that the difference is only one of degree, Mr. Ritchie sought to evade the significance of this fact by arguing that it does not follow that, if men have rights, animals also have rights “in the same sense of the term.” I maintain that it *does* so follow. If by the recognition of rights we mean that man, as a sentient and intelligent being, should be exempt from all avoidable suffering, it follows that other beings who are also sentient and intelligent, though in a lower degree, should have, in a lower degree, the same

exemption. This principle, if pressed to its extreme logical conclusion, will of course lead, like all other principles, to what Mr. Ritchie called “difficult questions of casuistry,” and will open a door for small jokes about the personality of parasites and sponges.

Then, again, it is too often overlooked that the rights claimed for animals, as for men, are not absolute but conditional (“this restricted freedom” is Herbert Spencer’s expression), and that a recognition of the rights of other beings is not incompatible with an equal assertion of one’s own. Self-defence is the first and most obvious right of everyone. If, for instance, we hold that a tiger has a right to be spared any unnecessary torture, are we compelled on that account to allow him to eat us if he comes out of his cage? And how would our shooting the tiger, under those untoward circumstances, prove that the tiger is not a “person,” inasmuch as murderers and *human* tigers, are similarly treated under similar conditions? This “tiger” argument, to which Professor Ritchie was much addicted, is really very small game.

1895.

II

THE NEO-CARTESIANS^[51]

ATTEMPTS are still made, from time to time, to revive the old Cartesian doctrine that animals do not feel pain. Thus Mr. E. Kay Robinson, in a book entitled “The Religion of Nature” (1906) has sought to bring peace and comfort to the minds of his readers, and to reconcile the seeming cruelties of Nature with the existence of a merciful God, by proving that the non-human races, unlike mankind, have no consciousness of suffering, even when they exhibit all the symptoms of pain and show a dread of its recurrence. This is nothing but the ancient doctrine of Descartes in a new garb, and is itself the outcome of the old anthropocentric view of the world.

On the practical results that would follow the general acceptance of Mr. Robinson’s theories it is hardly worth while to speculate. He himself is at pains to suggest that while the Cartesian doctrine undoubtedly led to cruelty in the past, the modern Robinsonian version of it would have the opposite effect. I greatly doubt it. For to whatever extent it is true that animals are

unconscious of pain, to the same extent it must be true that there is no “cruelty” (in the true sense of the term) in “paining” them. An enlightened man, no doubt, will avoid any tyrannical interference with the lives of other beings, whether they are conscious or not, but the majority of men are not enlightened, nor in any hurry to become so; we are living, in fact, in an age of very gross and palpable savagery, out of which nothing can lift us but the growing sense of kinship. Mr. Robinson’s book is one of the latest attempts—and, in some respects, the feeblest—to impair in a very important respect this sense of close kinship between the human and the non-human, and for that reason I regard it as very mischievous in its tendency. As a fair instance of Mr. Robinson’s logic, let us take his triumphant citation of the fact that even a human being, when engaged in some desperate and painful struggle, is often conscious, for the moment, of neither fear nor pain. From this Mr. Robinson quietly assumes that animals are *always* thus unconscious, because (a) some of their actions and emotions are so, and (b) “we have no right to suppose that one action or emotion of an animal is more conscious than another.” But, on the contrary, we have every right to suppose that consciousness varies in animals, as in men, as may be gathered from the indifference which two fighting dogs will show to the blows rained upon them by their owners, though at a moment of less excitement the same blows would elicit the most obvious signs of pain.

The *crux* of the whole problem lies here—in the meaning of the gestures by which animals appear to indicate that, like human beings, they are conscious of their various emotions, and it is by his chapter on “Actions of Animals Explained” that Mr. Robinson’s treatise must be judged. Humanitarians entirely reject his dogmatic assertion (to take a typical example) that “a dog’s exhibition of distress when separated from its master and mistress is only the working of the strong instinct of the gregarious, hunting animal, needing the primary factor of his life, namely, a leader to follow.” Not a particle of real proof can be given in support of such statements, and it is upon foundations of this kind that the “Religion of Nature” is built. And here there come to mind those trenchant words of Mr. Cunninghame Graham, which exactly describe the tone and method of Mr. Robinson’s argument:

“Instinct and reason; the hypothetical difference which good weak men use as an anæsthetic, when their conscience pricks

them for their sins of omission and commission to their four-footed brethren. But a distinction wholly without a difference, and a link in the long chain of fraud and force with which we bind all living things, men, animals, and most of our reasoning selves, in one crass neutral-tinted slavery.”

III

MOTOR VERSUS HORSE^[52]

“AFTER many centuries of usefulness,” so it is said, “the horse is about to be retired from active service as an agent in locomotion.” Electricity, petrol, and cable tramcars are to be the chief factors in this change, which will replace horsepower by the greater energies of mechanical invention, and will make it possible to ride a hundred miles “for about a shilling.” Looking at the matter as humanitarians we are heartily pleased at the prospect. To be sure, it is not very creditable to the good feelings of mankind that, “after many centuries of usefulness,” the horse should be “retired,” not because we are ashamed of the ill-usage he has received, but because we have discovered a cheaper method of traction; nor is it pleasant to reflect on the countless myriads of undeserved blows and curses that have descended on our faithful friend and helper during the period of his service. But letting that pass, as one of the many blots with which the pages of history are disfigured, we rejoice to think that the wretched system of horse-traction is perhaps drawing to a close, and we trust that the present century will see it legally prohibited in England, as dog-traction has already been.

No doubt we shall hear a lot of sentimental talk about the picturesque beauty of the horse, the ugliness of machinery, and so forth; but we shall know what to reply to such “æsthetic” arguments, with the experience before us (or, let us hope, *behind* us) of the hackney-cab, the tramcar, and the tradesman’s cart and wagon. The usage of the horse, in our so-called civilization, has reached a pitch of sordid deformity which, even if regarded solely from the point of view of the artist, makes it impossible to advance any valid argument against the motor-car. However unromantic such mechanical conveyance may be, it will at least save us from the unseemly sights that have outraged every sense of beauty, decency and humaneness. The motor will not be recklessly overloaded; it will not be cursed, and

thrashed, and wrenched out of its natural shape by way of an outlet for the savage temper of its driver; for curiously enough, the lifeless machine will be treated with far more respect, and in a far more rational spirit, than the living animal, and the conductor who should ill-use a car, as horses are now ill-used, would be promptly conveyed to the nearest police-cell or lunatic-asylum.

But what, it may be asked, is to become of the horse himself, in the new age of machinery? Is “retirement,” in his case, to be the same thing as extinction? We do not know; but we know this—that, in the case of our “beasts of burden,” merciful extinction is a preferable fate to what is humorously called “preservation.” Centuries hence, perhaps, some learned antiquarian will reconstruct, from such anatomical data as may be available, the gaunt, misshapen, pitiable figure of the London cab-horse, and a more humane and enlightened posterity will shudder at the sight of what we still regard as a legitimate “agent in locomotion.”

From *The Humanitarian*.
1896.

IV

ZOOLOGICAL GARDENS. [\[53\]](#)

SOME fifty or sixty years ago the poet, James Thomson (“B.V.”), wrote as follows in his journal:—

“It being a very wet Sunday, I had to keep in, and paced much, prisoner-like, to and fro my room. This reminded me of the wild beasts at Regent’s Park, and especially of the great wild birds, the vultures and eagles. How they must suffer! How long will it be ere the thought of such agonies becomes intolerable to the public conscience, and wild creatures be left at liberty when they need not be killed. Three or four centuries, perhaps.”

This gloomy prognostication hardly seems likely to be fulfilled, for there has lately been a great awakening of the conscience, if not of the general public, at least of the humaner section of it, and much improvement in the condition of the wild animals in the “Zoo” has now been effected. Ever

since its establishment in 1891 the Humanitarian League has been drawing attention to the cruelty of cellular imprisonment for animals as for men, and it is therefore with legitimate satisfaction that humanitarians note the introduction of a reform which they were the first to advocate. Here, for example, is an extract from a pamphlet which I wrote for the League in 1895, under the title of “A Zoophilist at the Zoo”:—

“‘*Christianos ad leones*’ was the cry of the heathen persecutors in ages long past, when the Christian martyrs were flung to the lions in the Roman amphitheatre. Time has now had his revenges; but we do not know that the new version of ‘*Christianos ad leones*,’ as daily exemplified in the stream of visitors to the lion-houses at the Zoo, is altogether edifying. Indeed, it has sometimes occurred to us, when musing on that strange medley of thoughtless sight-seers, who derive an unaccountable pleasure from staring at the wretched life-prisoners in our great animal convict-station, that the infra-human is not always confined to the inner side of the bars, and that there was some force in Thoreau’s epigram that God made man ‘a little lower than the *animals*.’ Well, we must hope for better things in the future. Less than a century ago it was the fashion to cage pauper lunatics where passers-by could see them; and benevolent nurses, when inclined to give a treat to the children in their charge, would pleasantly take them to have a peep at the frenzied ravings of the maniacs. We marvel now to hear of such inhumanity, but it may be that a future generation will equally marvel to hear that the sight of caged animals—those martyrs of Christian civilization—could give any satisfaction to the children, and the grown-up children to whom a “Zoo” is a Paradise.

“It all depends on how we look at these things. At present menageries are simply part of the whole system which regards the lower animals as mere goods and chattels, created for the use and amusement of mankind, without any definite claim, in return, to a free and healthy existence. The animals are no more than subjects for the museum or menagerie, the laboratory or dissecting-room. Does a rare bird alight on our shores? Our

object is to knock it down first, and, as the taxidermists say, ‘set it up’ afterwards; or, if it still lives, to confine it in a cage or aviary. The London Gardens are doubtless a great deal better than many other menageries; but our whole method of treating animals is stupid and barbarous. We want a more humane and intelligent appreciation of animal life, and that sense of *kinship* which would make us desirous of seeing our rudimentary brethren under happier and more natural conditions.

And, after all, we have ourselves paid the penalty for our lack of humanity, by the loss of humour that accompanied it; for the bathos of the notices that used to meet us at every turn in the Gardens was very depressing to those who were alive enough to feel it. The Bengal Tigers’ den labelled, ‘Beware of Pickpockets’! The Eagles’ Aviaries labelled, ‘To the Refreshment Rooms’! Were ever such incongruous ideas set in such ludicrous proximity? There, disconsolate in durance vile, sat the fabled Bird of Jove, who bore off Ganymede to be the god’s cup-bearer, while, within a few yards, the *modern* Ganymede was serving out coffees and lemon-squashes, and enjoying (though perhaps he knew it not) the most complete vengeance on the great Raptor who enslaved him.”

The most powerful indictment of the Zoological Gardens, as they were, was the series of articles contributed by Mr. Edmund Selous to the *Saturday Review* in 1901, and afterwards reprinted as a pamphlet by the Humanitarian League, under the title “The Old Zoo and the New,” a picture of what the Zoo actually was, as contrasted with what it might become. It was the publication of this trenchant criticism, synchronizing as it did with a movement for reform within the Zoological Society itself, that brought about the present improved state of public opinion as to the management of the Gardens, and caused the *Daily Mail*, that enterprising journal which is ready to exploit even humanitarian ideas when they seem likely to be popular, to publish a number of caustic articles on “The Tortured Animals at the Zoo.”

From America comes the same complaint, as in the following passage taken from an article in *Our Animal Friends* (New York):—

“It is indeed high time that the conditions of animals in menageries and zoological establishments should be made a subject of very practical concern. In many cases their condition is pitiable. Few things are more distressing to observe than the restive motions of the larger cats, such as lions, tigers, and leopards, or of smaller animals like wolves and foxes, pacing back and forth in their small dens, as if suffering an agony of restlessness, as indeed they often must be. No animal ought to be kept in any such condition, and the time may come—we think it has already come—when this form of cruelty may be abolished by the strong hand of law, where it cannot be terminated by the milder methods of persuasion.”

V

SCIENTIST AND SACERDOTALIST^[54]

WHAT do our up-to-date scientists think (if they think at all) of the justification of vivisection put forward by Monsignor John S. Vaughan, a sacerdotalist of the medieval school? To a watchful observer few things could have been more entertaining than the spectacle of an old-world Catholic, a belated casuist of (say) thirteenth century temperament, coming forward in the *Saturday Review* (new style) to justify, from a moral standpoint, the doings of the modern vivisector, and basing his argument on the immemorial “proposition” that “beasts exist for the use and benefit of man.”

Now, there are undoubtedly numbers of persons living in this twentieth century who still hold the belief that the animals were created for man’s pleasure, and it may be that, in appealing to that ancient superstition, Mgr. Vaughan was using the most popular weapon in the pro-vivisectionist armoury. But whatever the “man in the street” may think on this subject, the evolutionist and man of science, at any rate, is *not* able to take refuge in the plea that man is the centre of the universe, and that all other beings were created for mankind; for if there is one thing above others that Darwin’s followers have scouted, it is this old anthropocentric notion which forms the Monsignor’s “proposition.” The animals, according to the scientific view, were not designed for man’s benefit, nor is there any impassable gulf

between human and non-human—on the contrary, man was evolved from among the animals, and is in very truth an animal himself. This is the creed, beyond denial or evasion, of the Darwinian scientists, whose torture of their rudimentary brethren the sacerdotalist is so eager to condone. Monsignor Vaughan is defending vivisection by an assumption which the vivisectors themselves must hold to be unscientific and obsolete. The sufficient answer to the anthropocentric fallacy of the theologian is found in Mr. Howard Moore's laconic remark: "But Darwin has lived."

But vivisection has got to be defended somehow, on moral, as well as medical, grounds; and to do Monsignor Vaughan justice the ground he alleges is the only one that can afford, or could once have afforded, any semblance of logical foot-hold. "Beasts exist for the use and benefit of man." In that unquestioned belief lay the justification—the supposed justification—of the horrible tortures inflicted on animals in the medicinal and magical quackery of the middle ages, when, as Dr. Berdoo has pointed out, "the nastier the medicament the more was expected of it." Animals were regarded alike by the religion, and the science, and the common usage of the times, as mere *things*, providentially designed to be the instruments of man's welfare, at the cost of whatever suffering to themselves. What, therefore, if they were carved, and tortured, and vivisected to provide mankind with the filthy nostrums prescribed as the remedies for disease? An anthropocentric philosophy could explain and justify it all. And so it might do at the present time, but for the fact that the anthropocentric philosophy—as a philosophy—has itself ceased to exist.

Indeed, the point of the complaint against the scientists is precisely this—that the practice of vivisection, though perhaps logically justifiable on the absurd old belief that animals have no *raison d'être* except to minister to man's convenience, is wholly unjustifiable in the light of evolutionary science, which has demonstrated beyond question the kinship of all sentient life. That the scientist, in order to rake together a moral defence for his doings, should condescend to take shelter even under the medieval reasoning of the sacerdotalist, is a proof that his position is hopelessly inconsistent and unsound; for having got rid of the old anthropocentric fallacy in the realm of science, he actually avails himself of the same fallacy in the realm of ethics. This, of course, is less surprising when we remember that one and the same person may be, and often is, as reactionary

in one department of thought as he is progressive in another, and that the modern man of science is not infrequently a medievalist in morals. The present writer well remembers the incident which first shook his faith in the infallibility of “science.” He had adopted a vegetarian diet, and a distinguished scientist with whom he happened to be on friendly terms expressed a wish to “speak to him” on the subject. The writer felt that a critical moment had arrived, and awaited the scientific pronouncement with respectful anxiety. When it came—spoken with evident earnestness—it was this: “Don’t you think the animals were *sent* us as food?”

So we see the scientist and the sacerdotalist, forgetting their radical differences, patching up a superficial alliance with the pious object of perpetuating the experimental torture of the laboratory. Henceforward let none say that Darwinian and Catholic are not in agreement. *Laborare est orare* was the old saying; and now surely it should be expanded by Monsignor Vaughan and his Catholic fellow-vivisectionists into *laboratorium est oratorium*—the house of torture is the house of prayer. If it is not exactly “mercy and truth” that are met together, “righteousness and peace” that have kissed each other, still it is a beautiful and touching scene of reconciliation—this meeting of scientist and sacerdotalist over the torture-trough of the helpless animal. They might exclaim in the words of Tennyson:—

“There above the little grave,
O there above the little grave,
We kissed again with tears.”

It seems to us as humanitarians, that, as far as Monsignor Vaughan and the Catholic vivisectionist school is concerned (it is otherwise with the scientists), it is pure waste of time to argue with them, there being a fundamental difference of opinion as to data and principles. The sole reason for discussion is to insure that the humanitarian view of the question be rightly placed before the public, and this can best be done by stating it clearly in contradistinction to the anthropocentric dogma. We do *not* admit the assumption that “beasts exist for the use and benefit of man.” We view the matter in a wholly different aspect. We find ourselves born into an age which has been evolved in a gradual progress from savagery to civilization, with old-world wrongs around us, the worst of which are being slowly redeemed, century after century, by a growing spirit of brotherhood. We

have never pretended that these wrongs, woven as they are into the fabric of Society, can be immediately and simultaneously righted, nor do we admit, in the case of the lower animals any more than in the case of men, that the necessity of inflicting *some* pain confers the right to inflict *any* pain. We insist on the undeniable tendency from barbarism to humaneness, which has already at many points bridged the gulf between man and man, and will also bridge the gulf between man and his lower fellow-creatures. Science has exploded the idea that there is any difference in kind, and not in degree only, between the human and the non-human animal; and sympathy, guided by reason, is making it more and more impossible that we should for ever treat as mere automata fellow-beings to whom we are, in fact, very closely akin.

Humane Review, 1901.

VI

THE CONFESSIONS OF A PHYSICIAN^[55]

“CONFESSIONS of a Physician,” by V. Veresaeff, is a Russian work, first published in 1901, the writer of which exposes with the utmost frankness the secrets of the medical profession—the doubts, difficulties, dangers, scruples, failures, and even homicides, that fall to the lot of the practitioner. It is not that Veresaeff is disloyal to his colleagues; but his judgment is drawn in two opposite directions by his sense of duty to Science on the one side, and to Morality on the other, and is exercised by the problem of how to reconcile the “necessities,” as he conceives them, of medical research with the “rights,” as he cannot but admit them to be, of its human and non-human victims. Hence, though Veresaeff is himself only in part a humanitarian, his book has considerable interest for humanitarian readers.

In a dissertation on the English anti-vivisection movement, from which the Russian movement originated, Veresaeff, while not stifling his misgivings, falls back on the assertion that vivisection is necessary, because it is impossible without it to know the living organism. He is very contemptuous of the “clergymen, society ladies, statesmen, persons entirely unassociated with science,” who seek to refute the scientists; but then, veering to the

moral side of the question, he makes the following reference to this book on “Animals’ Rights”:

“However, we must give them their due; for not all the anti-vivisectionists base their opinions upon such crude and ignorant tenets. A number of them seek to base the whole question upon foundations of pure principle; thus, for instance, the author of ‘Animals’ Rights, Considered in relation to Social Progress,’ says: ‘Let us assume that the progress of surgical science is assisted by the experiments of the vivisector. What then? Before rushing to the conclusion that vivisection is justifiable on that account, a wise man will take into full consideration the other—the moral side of the question—the hideous injustice of torturing an innocent animal.’ This is the only possible and fitting position for the anti-vivisectionist to take up; whether science can dispense with vivisection or not, does not concern him; animals are made to suffer, and that settles everything. The question is plainly put, and there can be no room for any equivocation. I repeat, we ought not to ridicule the pretensions of the anti-vivisectionists—the sufferings of animals are truly horrible—and sympathy with them is not sentimentality; but we must bear in mind that there is no ‘way round,’ where the building up of scientific medicine—its goal—the healing of mankind—is at stake.”^[56]

While welcoming this statement, I must point out that in the passage of “Animals’ Rights” (p. 71) to which Dr. Veresaëff refers, I did not for a moment *admit* that vivisection is necessary to surgical science; I merely *assumed* it for purposes of argument, and I added the important qualifying words which are omitted in the Russian quotation: “A large assumption certainly, controverted as it is by some most weighty medical testimony.” It is necessary to point this out, because we humanitarians do not share Dr. Veresaëff’s perplexity, swayed as he is between the demands of a vivisectioning science and the protests of a suffering humanity; on the contrary, we are convinced that the painful contradiction between conflicting duties, by which his mind is troubled, is a phantom of his own creation. No doubt if he assumes that one particular science, that of medicine, must pursue its course regardless of any other science, such as that of morals, he will find

himself confronted by problems and contradictions innumerable, to which no direct answer can be given; but that very assumption is one which no clear-headed thinker will grant. No single science can make true progress at the expense of another science; and when such conflicts arise they are a sign that there is something wrong, and that it is time to pause and to reflect. Medical problems, like all others, can only be solved in the solution of the social question as a whole, and there is no royal road to the achievement of medical aspirations.

VII

ANTIPATHY OR SYMPATHY?^[57]

IT is to be regretted that so distinguished a writer as Mr. G. K. Chesterton should have given countenance to the idea that an assertion of the rights of animals implies a denial of the rights of man. "I use the word humanitarian," he says (in his book "Orthodoxy,") "in the ordinary sense, as meaning one who upholds the claims of all creatures against those of humanity." This strange blunder of supposing that we humanitarians regard the interests of humans and sub-humans as antagonistic to each other seems to arise from a misunderstanding of our statement that, in the spread of humane feelings, there is a *gradual*, not immediate, recognition of kinship, embracing first the family, then the fellow citizen, then the slave, and then the non-human race—a progressive sense of morality which is thus ridiculed by Mr. Chesterton:

"I think it wrong to sit on a man. Soon, I shall think it wrong to sit on a horse. Eventually (I suppose,) I shall think it wrong to sit on a chair. That is the drive of the argument.... A perpetual tendency, to touch fewer and fewer things might, one feels, be a mere brute unconscious tendency, like that of a species to produce fewer and fewer children."

Mr. Chesterton, it will be seen, supposes that the trend of humanitarian thought is merely "to touch fewer and fewer things"—to "touch," that is, with the whip, the hob-nailed boot, the hunting-knife, the scalpel, or the pole-axe. He wholly fails to see that what we really desire is to "touch" not fewer and fewer things, but more and more—*i.e.*, to get into touch with

them by virtue of that sympathetic intelligence which shows us that they are akin to ourselves. Why, ultimately, do we object to such practices as vivisection, blood-sport, and the butchery of animals for food? Because of the cruelty involved in them, no doubt; but also, and even more, because of the hideous narrowing of our own human sympathies and human pleasures which these savage customs involve.

Let Mr. Chesterton imagine the existence of an ogreish race of men so powerful that wherever one of them appeared, all ordinary mortals would be fain to run at full speed into holes and corners to escape him. Would these tyrants find it to be a diminution, and not rather a vast increase, of their enjoyment, if they learnt gradually “to touch fewer and fewer things” in the ogreish sense, while they touched more and more in the sense of brotherhood and friendship? Precisely the same in kind, though not, of course, in degree, is the relation, as apprehended by humanitarians, of man towards the lower animals.

Equally erroneous is Mr. Chesterton’s assumption that mankind is, in some special and exclusive sense, a “society,” different in kind, and not in degree only, from the lower races.

“Mankind is not a tribe of animals to which we owe compassion. Mankind is a club to which we owe our subscription. Pity, the vague sentiment of the *sunt lacrymæ rerum*, is due indisputably to everything that lives. And as regards this, the difference between our pity for suffering men and our pity for suffering animals is very possibly only a question of degree. But the difference between our moral relation to men and to animals is not a difference of degree in the least. It is a difference of kind. What we owe to a human being we owe to a fellow-member of a fixed, responsible, and reciprocal society.... This is the basic error upon which all Mr. Salt’s school goes wrong. They will not see that when we talk of human superiority we do not mean superiority in a degree on an inclined plane; we mean the existence of a certain definite society, different from everything else, and founded not on the sorrows of all living, but on the rights of men. Cruelty to man and cruelty to animals are two quite detestable, but quite different, sins.... The man who breaks a cat’s back breaks a cat’s

back. The man who breaks a man's back breaks an implied treaty. The tyrant to animals is a tyrant. The tyrant to men is a traitor. Nay, he is a rebel, for man is royal.”^[58]

Mankind, says Mr. Chesterton, is a society. But so are bees and beavers. There are innumerable societies, and it is impossible to prove that human society is more organic or more conclusive than the rest. Our sense of kinship is continually widening, and there never has been, nor is, any finality in the social bond of which Mr. Chesterton speaks. It would have surprised the Greek or Roman of old to be informed that he was a member of the same society with the barbarian or the slave. It would hardly be admitted by the white American of to-day that he and the African negro are own brethren. That, presumably, is because their sympathies are not yet developed enough to enable them to see even the fact of human kinship; but what if Mr. Chesterton's sympathies are not developed enough to enable *him* to see what many less subtle intellects have already seen—that beyond this “human” society there is the still larger society of the higher sentient existence.

“The man who breaks a cat's back breaks a cat's back.” This terse saying contains the root of all cruelty to animals, the quintessence of all the anthropocentric bigotry which has caused the immemorial ill-usage of the non-human races through the length and breadth of the world. “The man who breaks a cat's back breaks a cat's back.” Yes, and the scientist who vivisects a dog, vivisects a dog; the sportsman who breaks up a hare breaks up a hare; the butcher who bleeds a calf bleeds a calf. That is all. And if one points out the cruelty, injustice, and folly of vivisection, or sport, or flesh-eating, appeal is instantly made to the vaunted fact that man is “royal” and the human race “a society”!

VIII

THE ANIMAL QUESTION AND THE SOCIAL QUESTION^[59]

It is, perhaps, not sufficiently recognized by zoophilists how largely the ill-usage of the lower animals is due to the iniquity of present social conditions, and how vain it is to expect to remedy the consequences without

attacking the cause. So long as pecuniary profit and self-interest are accepted as the guiding principles of trade, it will remain impossible to secure a right treatment for animals; because it is absurd to suppose that mankind will agree to exempt the lower races from the results of an economic tyranny of which men also are the victims. If the worship of the great god "Profit" bears so hardly on men and women, is it likely that the result of this pitiless struggle will be less disastrous to the animals, who by most people are not regarded as fellow-beings at all?

Let us take a few instances. The over-working of horses is one of the commonest and worst forms of ill-treatment to which domestic animals are liable, and is justly punishable by law when "cruelty"—that somewhat vague offence—can be proved. But such proof, except in flagrant cases, is rendered practically impossible by the fact that, for the sake of employers' profits, men and women are daily over-worked quite as cruelly as horses are. If tramway companies are permitted to work their men long and shameful hours to swell the shareholders' dividends, what can be done for the horses? And where there is actual ill-usage of horses by those who have charge of them, it must be remembered that the men's ill-temper is often the result of the harsh conditions under which they work. Selfishness begets its like, and the sufferers by a harsh system will in turn treat other sufferers harshly.

Again, why is it that so many persons are engaged in trades that involve cruelty to animals? Obviously because the present conditions of society leave them no choice. One man must be a slaughterman, another a cattle drover, another a bird-catcher, because no other occupation happens to be open to him, and he naturally chooses to ill-treat animals rather than to starve himself. Economic necessity leaves no scope for humaneness. Before we fairly condemn the brutal drover, or sealer, or bird-catcher, we must so reconstitute society as to ensure to each citizen a decent and humane livelihood. It is idle to preach humanity to those who themselves live in ever-present fear of the hunger-wolf.

In like manner "sport," in its baser forms, is maintained and perpetuated by bad social conditions. It was the "hangers on" of the Royal Buckhounds who made it so difficult to abolish that disreputable institution; tame stags must still be worried that local "trade" may be encouraged; and that rich idlers may come into the hunting districts to spend their wealth. So, too, the

blackguardly pastimes of rabbit-coursing and pigeon-shooting are mainly supported by the betting and gambling element, which thrives in proportion as honest work is underpaid. Nor is it to be wondered that many individuals of all classes should become gamblers and rogues, when the principle of commercial enterprise is what it is—an utterly immoral desire to make money by the quickest possible method, and without the slightest consideration for any interests but one's own.

In this breakneck competition everything must be done at high pressure, or the margin of "profit" will be lost. It is horrible, is it not, that the slaughterman should sometimes skin the sheep alive? But time is money; and the slaughterman may himself be the victim of some skinflint employer, and perhaps he is anxious to rise to eminence in his profession and give his children a real Christian bringing up. Thus, too, the master-butchers have opposed the abolition of private slaughter-houses because their "profits" would be lessened. It costs more to have the best and most modern appliances—so humanity once more has had to wait.

The moral is that zoophilists, while in no wise relaxing their efforts for the welfare of the animals, should also range themselves on the side of social reform. And this suggests the remark that the sub-title of this book is not devoid of significance, for it is when they are "considered in relation to social progress" that the rights of animals are most likely to be understood.

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“Disquisitions on Several Subjects.” By Soame Jenyns. London, 1782. Chapter II treats of “Cruelty to Inferior Animals.”

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“The Cry of Nature, or An Appeal to Mercy and Justice on behalf of the Persecuted Animals.” By John Oswald. London, 1791. Written to advocate the discontinuance of flesh-eating.

“A Vindication of the Rights of Brutes.” London, 1792. Attributed to Thomas Taylor. (See above, p. 4.)

“A Philosophical Treatise on Horses, and on the Moral Duties of Man towards the Brute Creation.” By John Lawrence. Two vols. London, 1796-1798. The author of this humane book was a farmer, an authority on the management of domestic animals, who was consulted by Richard Martin, M.P., on the details of his Ill-treatment of Cattle Bill, which became law in 1822.

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“The Hare, or Hunting Incompatible with Humanity.” Dublin, 1800. A story, by an anonymous writer, purporting to be told by a Hare.

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“Moral Inquiries on the Situation of Man and of Brutes.” By Lewis Gompertz. London, 1824. The author of this book was secretary of the Society for the Prevention of Cruelty to Animals, and founder of an Animals’ Friend Society. A later volume, “Fragments in Defence of Animals,” was published by him in 1852.

“The Rights of Animals, and Man’s Obligation to treat them with Humanity.” By William H. Drummond, D.D. London, 1838. A guarded essay, in which the writer pleads for the restriction of vivisection, but justifies flesh-eating and field-sports.

“Philozoa, or Moral Reflections on the Actual Condition of the Animal Kingdom, and the means of improving the same.” By T. Forster. Brussels, 1839. A plea for humane education. A section of the book is devoted to the condition of animals on the Continent.

“The Obligation and Extent of Humanity to Brutes, principally considered with reference to the Domesticated Animals.” By W. Youatt. London, 1839. The writer, a Professor in the Royal Veterinary College, was a member of the Society for the Prevention of Cruelty to Animals.

“The Morality of Field Sports.” By Professor E. A. Freeman, “Fortnightly Review,” October, 1869. This article, together with a reply by Anthony Trollope and a rejoinder by Prof. Freeman, was reprinted (1900), under the title of “The Morality of Hunting,” by Mr. R. K. Gaye, of Trinity College, Cambridge.

“Some Talk about Animals and their Masters.” By Sir Arthur Helps. London, 1873. This popular little book contains many good remarks, but does not advance any consistent view of the question.

“The Rights of an Animal, a New Essay in Ethics.” By Edward Byron Nicholson. London, 1879. This book, with much interesting information, includes a reprint of a chapter by John Lawrence on “The Rights of Beasts.”

“The Ethics of Diet, a Catena of Authorities Deprecatory of the Habit of Flesh-Eating.” By Howard Williams. London and Manchester, 1883. Though written primarily from a vegetarian standpoint, this scholarly work contains a large amount of general information invaluable to students of the animal question.

“Animals’ Rights, considered in relation to Social Progress.” By Henry S. Salt. London, 1892.

“Moral Philosophy.” By Joseph Rickaby, S.J. London, 1892. Contains a statement of the Catholic position in denial of rights to animals.

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FOOTNOTES:

[1] An admirable definition of Rights is given by Mr. G. W. Foote in his contribution to “The New Charter”: “Rights are of three sorts—legal, moral, and natural. The legal meaning of ‘Rights’ is undoubtedly the primary one ... and this is the only *definite* sense, in which the word can be used.... Moral Rights are widespread new sentiments, demanding incorporation into Legal Rights; and Natural Rights are still newer sentiments, aspiring to recognition as Moral Rights, with a view to ultimate incorporation as Legal Rights.... They are respectively, a solid fact, a general demand, and a growing aspiration.”

[2] This remark implies not the “disparagement of logic and of all careful use of language,” with which Professor D. G. Ritchie has charged me in his book on “Natural Rights,” but simply that social reformers cannot be debarred from using the best available terms because no logically exact term is forthcoming. See Appendix [I](#).

[3] Attributed to Thomas Taylor, the Platonist.

[4] “Principles of Penal Law,” chap. xvi., 1780.

[5] John Lawrence, “Philosophical Treatise on the Moral Duties of Man towards the Brute Creation,” 1796.

[6] Professor Ritchie contends in his “Natural Rights” that domestic animals have *not* been granted rights in English law. “Because a work of art, or some ancient monument, is protected by law from injury, do we speak of the *rights* of pictures or stones?” But the distinction is obvious—works of art are protected only as *property*, domestic animals as *sentient beings*, whether owned or unowned.

[7] “Fraser,” November, 1863; “The Rights of Man and the Claims of Brutes,” by Frances Power Cobbe.

[8] “Book of Thoughts, Memories, and Fancies,” 1854.

[9] Humphry Primatt, D.D., author of “The Duty of Mercy to Brute Animals” (1776).

[10] See the article on “Animal Immortality,” “The Nineteenth Century,” Jan., 1891, by Norman Pearson. The upshot of his argument is that, “if we accept the immortality of the human soul, and *also* accept its evolutionary origin, we cannot deny the survival, in some form or other, of animal minds.”

[11] Prof. Huxley’s remarks, in “Science and Culture,” give a partial support to Descartes’ theory, but do not bear on the moral question of rights. For, though he concludes that animals are probably “sensitive automata,” he classes men in the same category. See Appendix [II](#).

[12] Schopenhauer’s “Foundation of Morality.” I quote the passage as translated in Mr. Howard Williams’s “Ethics of Diet.”

[13] "Descent of Man," chap. iii.

[14] "Man and Beast, here and hereafter," 1874.

[15] In Sir A. Helps's "Animals and their Masters." See an article on "Dumb Animals," in "The Humanitarian," November, 1912. Also the chapter on "Speech as a Barrier between Man and Beast," in Mr. E. P. Evans's work on "Evolutional Ethics and Animal Psychology," 1898.

[16] See Prince Kropotkin's articles on "Mutual Aid among Animals," "Nineteenth Century," 1890, where the conclusion is arrived at that "sociability is as much a law of nature as mutual struggle." A similar view is expressed in the "Study of Animal Life," 1892, by J. Arthur Thomson. "What we must protest against," he says, in an interesting chapter on "The Struggle of Life," "is that one-sided interpretation according to which individualistic competition is nature's sole method of progress."

Another and more recent work, which has a very important bearing on this question, is "Symbiosis: a Socio-Physiological Study of Evolution," by H. Reinheimer, 1920.

[17] Auguste Comte included the domestic animals as an organic part of the Positivist conception of humanity.

[18] "Moral Duty towards Animals," "Macmillan's Magazine," April, 1882, by the then Bishop of Carlisle.

[19] See Lewis Gompertz' "Moral Inquiries" (1824), where it is argued that "at least in the present state of society it is unjust, and considering the unnecessary abuse they suffer from being in the power of man, it is wrong to use them, and to encourage their being placed in his power."

[20] "Animals and their Masters," p. 101.

[21] See Appendix [III](#).

[22] Under the Animals (Anaesthetics) Act, 1919, an anæsthetic is now required in certain cases, but the scope of the Act needs to be greatly enlarged.

[23] The use of dogs for purposes of draught was prohibited in London in 1839, and in 1854 this enactment was extended to the whole kingdom.

[24] "On Cruelty to the Inferior Animals," by Soame Jenyns, 1782.

[25] Mr. E. B. Nicholson. See Appendix [IV](#).

[26] Unfortunately they are not of much value even for *that* purpose, owing to the deterioration of health and vigour caused by their imprisonment. "The skeletons of aged carnivora," says Dr. W. B. Carpenter, "are often good for nothing as museum specimens, their bones being rickety and distorted."

[27] "La Bible de l'Humanité."

[28] See the Humanitarian League pamphlets on "Cattle-ships," and "The Reform of the Slaughter-house."

[29] "The Rights of an Animal," 1879.

[30] Edward Carpenter, "England's Ideal."

[31] As in the article by Sir Herbert Maxwell on “Our Obligations to Wild Animals,” “Blackwood’s Magazine,” August, 1899.

[32] Soame Jenyns, 1782.

[33] See the chapter on Fallacies of Sportsmen in the volume of essays entitled “Killing for Sport” (George Bell and Sons, 1915). Several of the sophisms by which fox-hunting is commonly defended were employed by Dr. Lang, Archbishop of York, in an address which he gave (November 16, 1913) when dedicating a stained window to the memory of a deceased blood-sportsman.

[34] “The Horrors of Sport,” Humanitarian League pamphlet, by Lady Florence Dixie.

[35] “It is extremely difficult to see why these tame deer of park and paddock should not be held to be domestic animals within the meaning of the Acts for the Prevention of Cruelty to Animals. Indeed, if they have ceased to be *feræ naturæ* they must be domestic animals, unless there be some miserable *tertium quid* which is neither one nor the other. I am not aware that there ever has been a definite decision of the High Court upon this matter, and I venture to think that if a suitable case were to be taken up and properly argued, it is possible that a judgment welcome to humanitarians might be obtained.”—*Sir George Greenwood* (“Humane Review,” January, 1908).

[36] Letter to “Pall Mall Gazette,” March 24th, 1892, by Lady Florence Dixie.

[37] Since this was written, more than thirty years ago, there has been a welcome growth of public feeling, resulting in a better control of the plumage trade.

[38] See Appendix [V](#).

[39] We are told that in this country such barbarities are no longer possible, because, by the Act of 1876, vivisections may be performed by none but licensed persons, and the use of anaesthetics is made obligatory. It has to be remembered, however, that special licences can be obtained to dispense with anaesthetics, or, if an anæsthetic be administered, to allow the vivisector to keep the animal alive after the effect of the anæsthetic has passed away, in order to watch the results of the experiment, during which period the animal frequently has to endure great suffering.

[40] On the reference to this passage in “The Confessions of a Physician,” by V. Veresaëff, see Appendix [VI](#).

[41] It is said that the first Lord Aberdare, in presiding over a meeting of the Royal Society for the Prevention of Cruelty to Animals, and in warning the society against entering on an anti-vivisection crusade, gave utterance to the delightfully irrelevant remark that he had himself been thrice operated on, and was all the better for it!

[42] See J. Cotter Morrison’s article on “Scientific *versus* Bucolic Vivisection,” “Fortnightly Review,” 1885.

[43] Professor Jevons, “Fortnightly Review,” 1876.

[44] “Mind in Animals,” translated by Annie Besant.

[45] “The Old Faith and the New.”

[46] See Appendix [VII](#).

[47] See Appendix [VIII](#).

[48] “They tell children, perhaps, that they must not be cruel to animals.... What avails all the fine talk about morality, in contrast with acts of barbarism and immorality presented to them on all sides?”—Gustav von Struve.

[49] “Principles of Political Economy.”

[50] See p. [3](#).

[51] See p. [10](#).

[52] See p. [29](#).

[53] See p. [37](#).

[54] See p. [69](#).

[55] See p. [71](#).

[56] From the translation by Simeon Linden, London, 1904; pp. 158, 159.

[57] See p. [84](#).

[58] *Daily News*, April 10, 1906.

[59] See p. [86](#).

[60] It has not been attempted in the following pages to give a complete bibliography of the doctrine of Animals’ Rights, but merely a list of some of the chief works, in English, that touch directly on that subject.



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